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[00:09:50] I also come to order. Members, please take your seats. Head page. The House is now in session. All persons not entitled to privileges of the floor, please retire to the gallery. The members will rise and be led in prayer by the Honorable Joshua G. Cole, the Delegate from Fredericksburg.

[00:10:11] Calm down and remain standing for the Pledge of Allegiance to the Flag of the United States of America, which will be led by the Delegate from Alexandria, Delegate Aaron. Amen. Let us pray. Holy God, Holy Mighty, Holy Immortal One, have mercy on us. Source of wisdom beyond our own, we come before you mindful of the weight of this moment and the responsibility entrusted into this August body.

[00:10:33] We give thanks for the privilege of service, for the trust of the people of the Commonwealth, and for the call to labor not for ourselves, but for the good of those whose voices are not always heard in this room. Grant us wisdom in our decisions, courage to do what is right, and humility to remember why we are here.

[00:10:49] And now mindful that accountability begins within, we pause in confession. We confess at times we have listened too little, spoken too quickly, and allowed pride, partisanship, or fear to cloud our judgment. Forgive us for what we have done and by what we have left undone.

[00:11:06] We have not loved our neighbors as ourselves. We are truly sorry and we humbly repent. Renew our hearts and steady our spirits that our work may reflect justice, compassion, and integrity. And as we proceed today, may we debate with respect, serve with faithfulness, and remember that every vote carries real lives and real consequences.

[00:11:26] And in the words of the psalmist, Lauren Hill, may we be challenged to remember how you're going to win if you ain't right within. Amen. Amen. I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:11:55] The members will answer the roll call by indicating their presence on the electronic voting board.

[00:12:19] Clerk will close the roll. Mr. Speaker, a quorum is present. Pursuant to House Rule 3, I have examined and approved the journal of the House of Delegates for Friday, January 30th, 2026. Motions and resolutions under Rule 39 pursuant to the provisions of Rule 40 are now in order. Does the clerk have any announcements or communications?

[00:12:35] Not at this time, Mr. Speaker. Therefore, in this first portion of the morning hour, pursuant to House Rule 40, speaker requests to use your request to speak button for the items listed for reference up on the voting board. Delegate Femmin Ryko, Delegate Bowling. Thank you, Mr. Speaker. I rise to the purpose of an introduction.

[00:12:51] Delegate has the floor. Thank you, Mr. Speaker. Today we are joined by the Virginia AFL-CIO and its many affiliate unions and their union members from across the Commonwealth for their lobby day. I'd ask those in the gallery to please stand if you're able so that the House may recognize you.

[00:13:08] The Virginia AFL-CIO holds a special place in my heart because when I'm not serving here in the House of Delegates, I serve as their communications director. The Virginia AFL-CIO and its affiliates work every day to strengthen worker protections, promote safe workplaces, raise wages, expand access to retirement and health benefits, and open doors to education and opportunity through collective action.

[00:13:31] Through their area labor federations and local unions, they also show up in our communities supporting families, volunteering, and giving back across the Commonwealth. Mr. Speaker, it's my hope that the House will join me in giving the Virginia AFL-CIO a warm House welcome. Welcome.

[00:13:56] Welcome to the Capitol today. The delegate from Jobs County, Delegate Ballard. Thank you, Mr. Speaker. I rise for the purposes of two introductions. Delegate has the floor. - Thank you Mr. Speaker, members of the body. We are joined in the gallery today by representatives of the Virginia Tech Corps of Cadets, and I ask that they please stand.

[00:14:18] Members of the house, we have with us the Commandant, Major General Seeley, the Corps Regimental Commander, Cadet Wall, 4th Battalion Commander, Cadet Hill, the Regimental Operations Officer, Cadet Smallwood, and the Regimental Sergeant Major, Cadet Garris. We are privileged to be in the presence of the Virginia Tech Corps of Cadets, who boasts over 1,400 cadets in Blacksburg.

[00:14:41] It's the largest Corps formation since 1965. As you may know, Mr. Speaker, the Corps prepares cadets for a lifetime of service and leadership in the military and beyond, and is the largest non-service academy commissioning source for the U.S. military with a commissioning rate of 85%.

[00:14:59] In the spirit of Ut Prosim, service to the Commonwealth is a cornerstone of the cadet experience, with cadets providing over 8,000 hours of community service last academic year alone. And I may note, Mr. Speaker, that over 500 cadets showed up in my home of Giles County to assist us in the cleanup efforts after the devastating impacts of Hurricane Helene.

[00:15:23] So with that, Mr. Speaker, members of the body, please join me and my colleague across the aisle, Delegate Lily Franklin, in giving the Virginia Tech Corps of Cadets a warm house welcome.

[00:15:46] Thank you, Mr. Oh, you got one more. Yes, sir, Mr. Speaker. Overachiever today. Welcome to the Capitol today. The delegate from Giles County. Thank you, Mr. Speaker, for my second introduction. Members of the body, I'm pleased to welcome with us in the gallery members of the Virginia Manufacturers Association, which includes one of my own constituents, Prestar Packaging of Christiansburg, and I ask that they stand.

[00:16:13] Also with us, Mr. Speaker, members of the House, We have the VMA's board chairman, Andy Kowalski, and VMA president and CEO, Brett Vasse. Members of the House, Press Star, who's located in my district of Christiansburg, is an innovative packaging manufacturer that was recently named Best in Show and the coolest thing made in Virginia in the 2025 Virginia Manufacturing Cup for its pop-up gift card box.

[00:16:41] That's an award-winning product designed and manufactured right here in the Commonwealth. Mr. Speaker, Prestar represents the very best of Virginia manufacturing, creative design, sustainable production, and good-paying jobs that support our local economy, all while exporting Virginia-made products around the world.

[00:17:00] With that, Mr. Speaker, I hope it's the pleasure of the body to join me in welcoming the Virginia Manufacturers Association, as well as congratulating Prestar Packaging on their outstanding achievement. Welcome, welcome to the Capitol today.

[00:17:23] A delegate from Prince William, delegatorian. Thank you, Mr. Speaker. Mr. Speaker, I rise for the purpose of an introduction. A delegate has the floor. Mr. Speaker and members of the House, joining us in the House today is my friend and federal partner, Congressman Eugene Vittman. As most of you know, Eugene and his family came to the United States as refugees from Soviet Ukraine when he was just four years old.

[00:17:47] He served our country in the Army for 25 years. Now he proudly represents the 7th District of Virginia, which stretches across 11 localities in the central and northern areas of the Commonwealth. In Congress, he serves on the U.S. House Armed Services Committee and the U.S. House Agricultural Committee.

[00:18:10] He has spent the last year working with lawmakers on both sides of the aisles to lower costs, improve public education, and protect our basic rights and freedoms. Mr. Speaker, I hope it is the will of the body to join me in giving a warm house welcome to Congressman Eugene Vittman.

[00:18:31] Welcome, Congressman Vittman. Welcome to the People's House. The delegate from Franklin, Delegate Davis. Mr. Speaker, I rise for an introduction.

[00:18:48] Delegate has the floor. Mr. Speaker, in the gallery today, we have Virginia State Dairymen's Association and Homestead Creamery. I ask that they rise. Well, maybe they're not here.

[00:19:04] Mr. Speaker, as you enjoy the local ice cream waiting in the legislative freezers today, please take a moment to recognize the hardworking farm families who made it possible. I want to remind this body that you're tasting the hard work of Virginia's dairy farm families.

[00:19:20] The dairy industry is the cornerstone of our Commonwealth's agricultural economy, contributing nearly $4 billion annually and supporting thousands of local jobs across the Commonwealth. By supporting our dairy producers, we aren't just preserving a way of life.

[00:19:37] We're ensuring that Virginia remains a leader in sustainable food production. These producers work 365 days a year to provide a nutrient-dense, high-quality product while serving as dedicated stewards of our land and water. This treatment is a small sample of the world-class quality coming out of our rural communities.

[00:19:56] The ice cream was provided by Homestead Creamery, which is in my district. They're now celebrating their 25th anniversary. Homestead Creamery is proud to produce high-quality glass-bottled A2A2 milk and super-premium ice cream products.

[00:20:14] Today, the creamery is supported by a network of eight local family-run dairies dedicated to the health and happiness of their cows and to delivering wholesome, exceptional products to their customers, as they have done for a quarter of a century.

[00:20:31] Mr. Speaker, I request that the members join me in extending a warm house welcome. Welcome. Welcome to the Capitol when they get here.

[00:20:49] The delegate from Fairfax, Delegate Delaney. Thank you, Mr. Speaker. I rise for an introduction. Delegate has the floor. Thank you, Mr. Speaker. I would like to welcome members of the Virginia Transit Association to the gallery. And if you are in the gallery, please rise.

[00:21:06] In 2025, the Commonwealth's Public Transportation Network handled nearly 145 million trips, generated over $11 billion in economic benefits for the state and prevented the release of nearly 90,000 or more metric tons of greenhouse gas emissions from our environment.

[00:21:23] So simply put, public transportation keeps life affordable for our citizens while keeping our economy and our environment moving forward. So I hope you'll all join members of VTA tonight at Richmond's historic Main Street Station at 5.30 p.m. for their annual transit and rail barbecue bash reception.

[00:21:41] And please join me in giving the members of the Commonwealth Transit community a warm house welcome. Welcome to the Capitol today. The Delegate from Richmond City, Delegate Smith.

[00:22:00] Thank you, Mr. Speaker. I rise for an introduction. Delegate has the floor. Thank you. Today I would like to welcome LGBTQ plus Virginians, parents of transgender children, people living with HIV, faith leaders, and community-based organizations who are here with Equality Virginia for their annual LGBTQ plus Lobby Day. I would ask that they would stand if they're in the gallery and able to. Thank you.

[00:22:29] Mr. Speaker, today they are here bravely sharing stories about the beauty and joy they experience when they have the freedom, safety, and opportunity to live authentically and openly. They are also advocating for us to be bolder and braver and stand firm against the federal government that has ramped up attacks on transgender people and people living with HIV. Mr. Speaker, it is up to all of us to ensure that Virginia and this General Assembly does what it can to protect

[00:23:05] our LGBTQ plus community. I thank them. I thank all the advocates that showed up today to ask more of our Commonwealth. And I would ask all of us to give a warm house welcome for them being here. Welcome. Welcome to the Capitol today. Delegate from Middlesex, Delegate Hodges. Good afternoon. And thank you, Mr. Speaker. I rise for an introduction. Delegate has the floor. Thank you, Mr. Speaker. The Women in Manufacturing Virginia chapter, otherwise

[00:23:45] known as WIM-VA, is proud to announce Jennifer Nay, training manager at Nestle Purina, located in King William, as the 2025 WIM-Virginia Woman of the Year. This prestigious recognition is part of the WIM-Virginia Recognition Program, which celebrates women who have made outstanding contributions to the manufacturing industry in Virginia.

[00:24:12] The WIM Virginia Woman of the Year Award is presented annually to the member who earns the highest number of leadership points through participation, leadership, and service within WIM VA's Outstanding Leader Program.

[00:24:29] Jennifer's commitment to advancing the mission of WIM Virginia, her leadership within her organization and the broader manufacturing community, and her consistent engagement in chapter initiatives have set her apart and really set her apart after talking with her as a true role model in the industry. Her efforts embody the spirit of women's mission to support, promote, and inspire women in manufacturing. Mr. Speaker, members of the House, please join me in congratulating Jennifer Ney on this recognition and this prestigious

[00:25:07] award and giving her a warm house welcome. Congratulations and welcome to the Capitol today. The Delegate from Alexandria, Delegate Herring. Thank you, Mr. Speaker. I rise for a motion. Delegate has the floor. Mr. Speaker, excuse me, I move that the House re-refer HB 264 on page 32 to the Committee on Rules. Without objection, HB 264 plan on page 32 is re-referred

[00:25:42] to the Committee on Rules. The Delegate from Washington County, Delegate O'Quinn. Thank you, Mr. Speaker. I rise for the purpose of an introduction. Delegate has the floor. Thank you, Mr. Speaker. Joining us in the gallery today, we have four exchange students, three from Abingdon High School and one from John Battle High School, and I would ask that they please rise.

[00:26:01] Hailing from the countries of Georgia, Latvia, Moldova, and Mongolia, they are attending Washington County Public Schools through the World Heritage Exchange Program. They'll be with us in Washington County through the end of the semester. They had a tour of the Capitol earlier, and I think some of them actually would like to stay and attend college here in Virginia.

[00:26:24] So, Mr. Speaker, I would ask that you all join me in giving them a warm house welcome. Welcome. Welcome to the Capitol today.

[00:26:40] The delegate from Virginia Beach, Delegate Converse Fowler. Thank you, Mr. Speaker. I rise for an introduction. The delegate has the floor. Thank you, Mr. Speaker. Joining us today in the gallery are members of the Cannabis Small Business Association, and I would ask that they please rise. The Cannabis Small Business Association represents hundreds of entrepreneurs from across the Commonwealth.

[00:27:03] Small businesses are the innovators of our economy, and cannabis small businesses are based in Virginia, grow legal hemp products in Virginia, and are licensed by Virginia. When they visit your offices today, please hear how their small businesses have positively contributed to Virginia.

[00:27:20] Please join me in welcoming members of the Cannabis Small Business Association today to the Capitol. Welcome, welcome to the Capitol today.

[00:27:38] Pursuant to House Rule 30, the journal shall reflect that the following members are away on pressing personal business and are granted leave from today's session. Delegate Knight, clerk will announce the next order of business. Ms. Speaker, next order of business is the announcement of member requests to move legislation from uncontested to irregular.

[00:27:54] There are several in that first category, House Bill's third, uncontested in that block. Page six, Delegate Glass is House Bill 579, out of the block over to the regular calendar. Then going forward in the calendar to the new category of House Bill 2nd Reading Uncontested, there are four in that category that get moved.

[00:28:16] Page 16, House Bill 123, Delegate Reeser's legislation, Delegate Simons, House Bill 131. On page 17, on page 18, Delegate Williams, House Bill 149, as well as Delegate Cousins, House Bill 716 on page, excuse me, House Bill 854 on page 28.

[00:28:41] Those four, at the request of Delegate Wyatt, are all out of the block and over to the regular calendar. I'm going to announce the next order of business. I apologize, Mr. Speaker. On the very last page, it's not live today, but on the first reading uncontested calendar, Delegate Willits, page 62, House Bill 606, is out of the uncontested first reading block over to the regular calendar request of Delegate Tran.

[00:29:10] So moving to the third portion of the morning hour, reserve member requests. The announcements, requests for legislation to go by after the day and defend a subsequent motion by the majority leader to effectuate that. There are several in that first category would be House Bills on third reading. Delegate Helmers, House Bill 1377 on page 11, he's requesting that go by for the day.

[00:29:32] And then in the category of House Bills on second reading regular, Delegate Tran has requested that Delegate Rasool's House Bill 423 on page 41, Delegate Anderson's House Bill 550 on page 43, and on page 44, Delegate Rasool's House Bill 1171, that that go by for the day.

[00:29:58] And then, finally, in the category of memorial resolutions, Delegate Tate is on page 49, House Resolution 42. She requests that that go by for the day. Delegate from Alexandria, Delegate Herring.

[00:30:15] Mr. Speaker, I move that the legislation, as announced by the clerk, go by for the day. Delegate from Alexandria, Delegate Herring moves that the legislation, as announced by the clerk, go by for the day. As many in favor of the motion, we'll say aye. Those opposed, no. The motion is agreed to. The clerk will announce the next autobus. And, Ms. Speaker, the fourth and final portion of the morning hour is reserved for member requests for points of personal privilege.

[00:30:33] Kindly use your request to speak button to get into the queue. The delegate from Arlington, Delegate McClure. Thank you, Mr. Speaker. Mr. Speaker, I rise for a point of personal privilege. The delegate has the floor. Thank you, Mr. Speaker. Yesterday marked the beginning of Black History Month. As is tradition in this chamber, my colleagues in the Virginia Legislative Black Caucus and I will spend the coming weeks lifting up people, movements and moments that reflect the indelible contributions that black Americans have made to the Commonwealth and to this nation. Today, February 2nd, also marks the 67th anniversary to the official end of public school segregation, which occurred in my community of Arlington

[00:31:10] County. A history my friend, the delegate from Arlington, Patrick Hope, will speak to in more detail shortly. And Mr. Speaker, my friend and colleague, the delegate from Norfolk, Delegate Anthony was taught by Patricia Godbolt, one of the Norfolk 17 who integrated Norview High School in 1959, just 67 years ago.

[00:31:32] A history not too far from today. Mr. Speaker, I rise today to help set the tone for the month ahead. And that tone is simple. Black history is not ancient history. It is living, it is breathing, and it is deeply relevant.

[00:31:49] Perhaps now more than ever, Mr. Speaker. We are only a few generations removed from the triumphs and the traumas that still shape our laws, our communities, and our lives. There are just decades between me and my grandmother, a sharecropper. And like you, Mr. Speaker, I and many of my colleagues here in this chamber have made history by being the first.

[00:32:12] Black history is not separate from American history. It is a vital thread in our shared story, one that shapes our present and offers a roadmap for our future. if we choose to follow it, but some think and some seem to believe that this history is distant and disconnected from our day-to-day lives, inspirational, but no longer relevant. And it's as if the struggles for equality have already been solved. But Mr. Speaker, I reject that notion.

[00:32:43] The forces our ancestors fought, dehumanization, hateful rhetoric, and the belief that a name, an accent, or the color of one's skin justifies violence or exclusion are still with us here in 2026. Black history equips us with the tools to confront these injustices today, just as it has for generations. So, Mr. Speaker, as we listen to stories throughout this month, let us remember they do more than just celebrate how far we've come. They challenge us to be uncomfortable and

[00:33:17] confront how far we still must go and what is required of each and every one of us here in this chamber to finally close that distance. So may we honor this history not with words alone but with the courage and the backbone to continue the work that it demands. Thank you Mr. Speaker and happy

[00:33:37] Black History Month. Delegate from Henrico, Delegate Navarre. Mr. Speaker I rise today for a point of personal privilege. The delegate has the floor. Thank you Mr. Speaker. I rise today to recognize Fred Korematsu Day of Civil Liberties and Constitution, a day the Commonwealth of Virginia honored last Friday, January 30th. Fred Korematsu was an ordinary American who faced an extraordinary

[00:34:17] injustice and chose to stand up anyway. During World War II, more than 120,000 people of Japanese ancestry were forcibly removed from their homes and incarcerated by their own government. No charges, no trials, no due process.

[00:34:35] Fear replaced facts, and prejudice replaced the Constitution. Fred Korematsu refused to accept that. He believed that the words, liberty and justice for all, applied to him, even when his government said otherwise. For that belief, he was arrested, imprisoned, and convicted after the Supreme Court upheld his incarceration as a so-called, quote-unquote, military necessity.

[00:35:00] That decision is now widely recognized as one of the gravest failures in our constitutional history. And that is why this day matters, not just as history, but as a warning. Because the lesson of Fred Korematsu is not confined to the 1940s.

[00:35:17] It is painfully relevant today. We see moments when fear is used to justify the erosion of civil liberties, when entire communities are treated as suspect, when constitutional rights are framed as inconveniences rather than guarantees. Fred Korematsu's story reminds us that the greatest threats to liberty often come wrapped in the language of security, and that constitutional rights are most at risk when it is politically easiest to ignore them. Nearly 40 years later, Fred's conviction was overturned after it was revealed the government had lied to the court and suppressed evidence.

[00:35:55] The United States issued a formal apology, and in 1998, Fred Korematsu was awarded the Presidential Medal of Freedom. Fred Korematsu Day calls on us, especially those entrusted with power, to be vigilant, to ask who is being excluded, to question who is being targeted, and to speak up before injustice becomes policy.

[00:36:19] Mr. Speaker, Virginia's recognition of this day is a commitment to learning from our past and refusing to repeat it. It is a reminder that the Constitution does not defend itself. It requires courage. It requires voices. And sometimes it requires ordinary people willing to stand alone and say, this is wrong.

[00:36:41] This is the legacy of Fred Korematsu, and this is a legacy worth honoring. Thank you, Mr. Speaker. The delegate from Fairfax, Delegate Shen.

[00:37:00] Thank you, Mr. Speaker. I rise for a point of personal privilege. The delegate has the floor. Thank you, Mr. Speaker. Today, something pretty extraordinary is happening in Richmond. Today, the monks will arrive, marking their 100th day on their Walk for Peace. This morning, Buddhist monks walking from Fort Worth, Texas, to Washington, D.C., are passing through the city as part of their Walk for Peace, a 2,300-mile pilgrimage devoted to compassion, nonviolence, and loving kindness. If you can think about this for just one moment, these monks have traversed eight states by foot over the last 100 days. That's more than 2,000

[00:37:37] miles, 20 miles a day, through heat, cold, ice, storms, and other hardships. I think, though, Mr. Speaker, it's especially important to understand why they are on this journey, because it's actually pretty unusual for monks to leave their monasteries. And the fact that they have done so and chosen to take this walk across the country, ought to be heeded as a warning, a warning that maybe our world is out of balance. This brave and committed group of monks are dedicating their steps and their service to calling attention to that reality, not with anger and not with force and not with violence, but through the core tenets of Buddhism that have made their, that have been visible through their journey. In their walk, you can see metta, loving

[00:38:17] kindness, and the flowers and the blessing strings they offer to strangers. In their walk, you can see karuna, compassion, continuing their pilgrimage even after serious headwinds like a storm or a serious car accident. Their compassion for the world, for all beings who are suffering, that compassion that pushed them out of their monastery and onto the streets. In their walk, you can see sati, mindfulness, because the walk itself is a moving meditation. They teach us that peace begins when we are truly present in each moment. And today, they are here just days from the end of their arduous journey. In a moment when so much of our lives feel so loud, divided, and exhausting,

[00:38:56] their presence and maybe even just the knowledge of their presence is a blessing. Across towns and cities, people stop what they're doing. Traffic comes to a screeching halt. Strangers stand together in silence. Some are brought to tears. Some bow their heads. Some offer prayers. And some even join them in their walk. And for a very, very brief moment, the monk's powerful message can bring calm

and quiet. And I think that in and of itself is telling because it tells us that people are hungry for peace amidst the chaos of the world. It tells us that kindness still matters, that compassion and empathy still connect us regardless of race, creed, politics, or background. And it

[00:39:34] reminds us that peace begins with each of us individually, one action, one thought, and maybe one step at a time. So today I wanted to recognize the monks walking through the Commonwealth of Virginia and welcome them. I thank them for the example that they are setting, not just with their words, but with their feet. And I wanted to let our colleagues know that the monks are actually hosting a peace gathering at City Hall at 3 p.m. I understand that the mayor and the governor will also be there, and so I hope if you can take some time away to go and greet them that you'll be able

[00:40:03] to do so. Thank you, Mr. Speaker. Delegate from Henry County, Delegate Phillips. Thank you, Mr. Speaker. I rise for a point of personal privilege. The delegate has the floor. Mr. Speaker, members of the House, today I rise to speak about something that affects every family, every business, every school, and every hospital in the Commonwealth, and that's energy reliability, or the growing lack of it here in Virginia.

[00:40:33] This is an issue that's no longer theoretical, it's no longer distant, it's no longer something we can afford to ignore. Virginia's electric grid is under real and growing strain, and unfortunately, we've made some policy decisions that are actively making it worse. Right now, Virginia is increasingly dependent upon electricity generated outside of our borders, particularly from West Virginia and Pennsylvania, to keep our lights on.

[00:40:56] We import that power over long transmission lines instead of producing it here where it's used. That's not energy dependence. Independence, it's energy vulnerability. And the hard truth is, the further the electricity travels, the more of it that we lose.

[00:41:13] Long-distance transmission is inherently inefficient. Power is lost as heat, lines become congested, and reliability declines. When demand spikes during cold snaps, like we just experienced, or heat waves, we are competing with other states for the same electrons.

[00:41:31] This past week's weather is a perfect example. Where Virginians needed power the most, solar generation contributed little or nothing to the grid, according to PJM. And at times it was actually a net liability, drawing power for inverter heating, snow cover mitigation, system balancing while producing minimal output.

[00:41:52] And as I rode through 1,850 acres of it in my own district that has 20% just in one county of the Commonwealth solar built, it was covered in ice and was out of commission for several days. And that's not ideology. It's just the fact and it's physics.

[00:42:08] Solar is intermittent. It does not perform well during winter storm mornings, cloudy days, prolonged cold spells, exactly when the demand is the highest. We continue to plan our energy future as though intermittent resources were enough to carry that load.

[00:42:24] They simply cannot. What Virginia needs most right now is dispatchable, efficient, in-state generation that can respond instantly to demand, stabilize the grid, and operate in all weather conditions. That means modern, natural gas, combined cycle plants built here in Virginia.

[00:42:43] Combined cycle plants are not relics of the past. They are among the cleanest, most efficient, large-scale generation technologies in the world, capable of reaching efficiency levels above 60%, and they ramp up quickly or at least as quickly as possible given the regulatory environment that they have to deal with both on the state and the federal level.

[00:43:01] They complement renewables, and they dramatically reduce emissions compared to older coal and oil facilities other states we are currently buying energy from now still use those older technologies most importantly they provide certainty they don't depend on the sun shining they don't depend on the wind blowing they don't depend on importing power from another state where when transmission lines are strained they depend on infrastructure we can control we can regulate and we can maintain right here in the commonwealth by building these plants in virginia we reduce transmission losses. We improve grid reliability. We lower long-term costs to rate

[00:43:40] payers. I can only imagine the emails and the phone calls that I will be getting when the next round of electric bills come out after this cold weather. They support high-paying skilled jobs. They strengthen energy security for vital infrastructure like hospitals, schools, manufacturers, and military installations. That means nuclear power as well, as we hopefully work together to make Virginia the nation's leader in robust, dispatchable SMR technology.

[00:44:06] Let's be clear, reliability is not optional. You can't run a modern economy or protect public safety and national security on best-case assumptions. Virginia can and should pursue cleaner energy, but we must do it without sacrificing reliability, without forcing premature shutdowns, and without placing our energy future in the hands of other states. If we one affordable power, resilient infrastructure, and economic growth, we must stop outsourcing our energy needs and start investing in robust, efficient, dispatchable generation here at

[00:44:42] home. Virginia can lead. Virginia should lead. Virginia can innovate. But Virginia also must be practical. The grid does not care about policy targets. It cares about supply, demand, and physics. So, Mr. Speaker, let us find a pathway forward together. I can count, Mr.

[00:45:00] speaker. And so I understand that we must work together to solve what I believe is the most pressing issue to face Virginia economically. From the cost of the ratepayer, to impact on economic development projects, there's simply not enough energy to power our burgeoning economy.

[00:45:17] To the safety and security of our Commonwealth's infrastructure, public safety, and most of all, our most valuable resource, our people, including the most vulnerable among us. We must find a path that balances the priorities from both sides of the aisle, but keeps affordability, reliability, and sustainability first and foremost.

[00:45:37] So Virginia is not left out in the cold or in the dark. So, Mr. Speaker, this is not an argument against clean energy. It's an argument for balance, seriousness, and realism. Virginia must engage in respectful, fact-based dialogue about the immediate future of baseload and dispatchable energy.

[00:45:55] Not years from now, not after a crisis, but now. In closing, winter storm fern was a warning, not a failure, but a reminder of how close the margin can become. It calls us to lead with prudence rather than ideology, with planning rather than wishful thinking, and with cooperation rather than partisanship.

[00:46:17] The grid does not care about politics. It responds to physics, fuel, and preparation. So let us work together now to take on this issue and solve it for all of Virginia. Thank you, Mr. Speaker. Delegate

from Arlington, Delegate Hope.

[00:46:40] Thank you, Mr. Speaker. rise for the point of personal privilege? Doug, then has the floor. Thank you, Mr. Speaker. Today we honor a profound chapter in black history, a chapter written in the 1st District of Virginia in Arlington. On February 2nd, 1959, at 8.45 a.m., 67 years ago today, four young students walked into Stratford Junior High School, moving calmly past rows of police officers stationed there because Virginia feared violence. And with quiet, steady, unmistakable courage, They changed the course of our Commonwealth.

[00:47:16] Their names were Ronald Deskins, Michael Jones, Lance Newman, and Gloria Thompson. They lived in the Halls Hill neighborhood in Arlington. They were just 12 and 13 years old, children who loved sports, music, and friends like other students. Yet on that winter morning in February, they stepped into a moment far larger than themselves.

[00:47:36] They walked past police officers, reporters, and crowds who had gathered to witness whether Virginia would honor the Constitution. They carried the hopes of their families, their community, and generations who had been denied equal access to education. We can only imagine what they felt that day: the nerves, the uncertainty, the weight of history pressing on their small shoulders.

[00:47:57] Their parents had prepared them carefully how to stay calm, how to respond to hostility, how to hold their heads high. And they did. But their courage did not stand alone. This moment was made possible by local champions in Arlington who refused to accept injustice and the status quo.

[00:48:14] For years, black families in Arlington have been fighting for equal education. They demanded better facilities, more qualified teachers, and the dignity of opportunity for their children. Their persistence laid the foundation for change. The Arlington NAACP chapter, working closely with the National Legal Defense Fund, pressed case after case, challenged the county and the Commonwealth to live up the promise of Brown v. Board of Education.

[00:48:41] And among the leaders who stepped up at that moment, Elizabeth Campbell stands out. As the first woman elected to the Arlington County School Board, she served during one of the most turbulent periods in Virginia's educational history. When the state government embraced massive resistance, threatening to close schools rather than integrate them, Campbell and a majority of the school board stood firm.

[00:49:04] They believed in public education, in the rule of law, and the simple truth that every child needs a fair chance. leadership ensured that when courts struck down the state's state school closure laws Arlington was ready to move forward because of these local champions and because of young students found courage to take those steps Arlington became the first county in Virginia to desegregate its public schools now for the record Norfolk became the second school district to take that historic step later that morning but in Arlington County remarkably the day passed peacefully the Arlington press would call it the day that nothing

[00:49:42] happened just four students taking their seats in a classroom and a barrier that had stood for generations quietly falling this moment reminds us that progress is not inevitable it is built by people people by families who refuse to stay silent by community leaders who stand firm when others waiver and by children yes mr. speaker children who summon the courage beyond their years and as we reflect on black history let us honor not only the national heroes whose names fill our textbooks but also the local

champions whose footsteps still echo in our schools, our neighborhoods, and our shared commitment to justice.

[00:50:21] May we continue to walk forward with that same resolve, that same courage, and the same belief in more just future that guided Ronald, Michael, Lance, and Gloria on that historic day. Today on this moment in Black history, we honor these heroes. Thank you, Mr. Speaker.

[00:50:46] The clerk will call a calendar. The calendar for today for the Virginia House of Delegates this Monday, February 2nd, 2026. Over 100 bills and 50 or so resolutions be considered beginning on page one.

[00:51:03] First category, Senate bills on third reading regular. First up is Senate Bill 6. Legislation provide for the submission of the voters for a proposed amendment to Section 1 of Article 2 of the Constitution of Virginia. Related to qualifications of voters, right to vote, persons not entitled to vote. Legislation report committee on privileges and elections.

[00:51:21] The delegate from Newport News, Delegate Price. Yes, Mr. Speaker. Senate Bill 6 is identical to our House Bill 963, which is the referendum bill for House Joint Resolution 2 for the affirmative right to vote and establishing upon release that those who lost their right to vote due to felony convictions will automatically have their voting rights restored.

[00:51:40] I move that we pass the bill. Shall the bill pass? Clerk will close the room. Ayes 64, noes 34.

[00:51:59] Ayes 64, noes 34. The bill passes. Last bill in this category, page 2, Senate Bill 449, providing for the submission to the voters of a proposed amendment to the Constitution of Virginia by adding in Article 1, a section number 11A, relating to fundamental right to reproductive freedom.

[00:52:23] This legislation is also reported to the Committee on Privileges and Elections. The delegate from Alexandria, Delegate Herring. Thank you, Mr. Speaker. I mean, sorry, SB 449 is a cognate to my House Bill 781, providing for the ballot language for the constitutional amendment to reproductive freedom, which will protect freedom to make personal decisions about prenatal care, childbirth, postpartum care, birth control, abortion, miscarriage management, and fertility.

[00:52:55] Protect doctors and nurses and patients from being punished for those decisions and allow for restrictions to access to abortions in the third trimester. I move that the bill will pass. Delegate from Campbell County, Delegate Zaire. Thank you, Mr. Speaker. Mr. Speaker, for three years now, I've asked this board to study this bill.

[00:53:13] I've asked this legislature to make it plain, to make it clear, to let voters know what's in this bill and what's not in this bill. And for three years, that request has been denied. Why would we not want the voters to know that this bill removes parental notification, that This bill allows young children to be run through these clinics without any notice, without any requirement for reporting.

[00:53:39] Why would we not want voters to know this? When I requested this study three years ago, I didn't have an opportunity. None of us knew what the language would be that the voters are actually going to see when they go to vote on this.

[00:53:58] This amendment has gone from confusing to downright misleading. The language that voters will be asked to vote on specifies in point to doctors and nurses. If you read the text of the bill, it specifies any individual.

[00:54:16] We are giving blanket immunity to anyone who botches an abortion, and we're going to say that we're protecting mothers. Mr. Speaker, we're asking voters to make a determination on something that will affect more children and more mothers than anything else this body does this year.

[00:54:42] We can do better. The voters deserve to know. Thank you, Mr. Speaker. Shall the bill pass? Clerk will close the roll.

[00:55:11] Ayes 62, Nose 35. Ayes 62, Nose 35. The bill passes. Next category, House bills. Mr. Spear. The delegate for Fairfax, Delegate Simon. Mr. Spear, having voted on the prevailing side by which this House just passed SB 6, I move that we reconsider that vote so that a member may cast her vote.

[00:55:34] This is SB 449. This is SB 6. You want to go back up to the previous bill? Yes, the previous bill, SB 6. Delegate from Fairfax moves that we, having voted on the prevailing side by which we pass SB 6, that we reconsider the vote so that the member may cast their vote.

[00:55:49] All those in favor say aye. Aye. All those opposed, no. The motion is agreed to. SB 6, shall the bill pass? Clerk will close the vote.

[00:56:09] Ayes 65, nos 34. Ayes 65, nos 34. The bill passes. Continuing on with the calendar, a new category. Delegate from Fairfax, Delegate Simon. Mr. Speaker, having voted on the prevailing side by which we passed SB 449, I move that we reconsider that vote so that a member can cast their vote on this important decision.

[00:56:30] Delegate from Fairfax, Delegate Simon moves having voted on the prevailing side by which we pass SB449 and we reconsider the vote. All those in favor say aye. Aye. All those opposed, no. The motion is agreed to. SB449, shall the bill pass? You cannot make this stuff up.

[00:56:54] Clerk will close the roll. Ayes 64, noes 35. Ayes 64, noes 35. The bill passes. Now moving on to the next category, House bills on third reading, uncontested counter.

[00:57:09] about 15 bills in the uncontested third reading calendar, beginning with House Bill 32, House Bill 32, then House Bill 39, 114, 391, 426, over on page 4, House Bill 431, 433, 434, House Bill 453, excuse me, House Bill 562, House Bill 572, over on page 6, continuing third reading uncontested block, House Bill 575, House Bill 579 is out of the block, House Bill, continuing with the block, House Bill 712, House Bill 860, and the final bill in the uncontested third reading calendar block is House Bill 1285.

[00:57:51] Shall the bills pass? Clerk will close the roll. Ayes, 99, no, 0.

[00:58:07] Ayes, 99, no, 0. The bills pass. Continuing with the calendar, next up, new category, House Bill is on third reading, final passage regular calendar beginning with house bill four at the bottom of page seven of the printed calendar legislation related to preservation of affordable housing definitions

[00:58:26] civil penalty shall the bill pass clerk will close the row ayes 65 noes 34 ayes 65 noes 34 the bill passes from page 8 house bill 14 now before you relates to a virginia residential landlord and

[00:58:54] Act enforcement by localities. Shall the bill pass? Clerk will close. Ayes 66. Noes 33. Ayes 66. Noes 33. The bill passes. House Bill 15. This legislation relates to the Virginia Residential Landlord and Tenant Act. This time landlord remedies non-compliance with rental agreement mandatory waiting. The delegate from Rockingham. Delegate Wilk. Thank you Mr. Speaker. Speaking to the bill. Delegate has the floor. Thank you Mr. Speaker. Ladies and gentlemen of the House. I just wanted to share some thoughts on this piece of legislation.

[00:59:38] I want to start by saying I understand and appreciate the sentiment behind this and many of the other Landlord-Tenant Act legislation. But the thing that concerns me is about are we looking ahead at the practical application as we put these things in place?

[00:59:56] So on House Bill 15 specifically, let's be clear that no one's being evicted after five days. This is only the beginning of a process that could likely take months. Secondly, the bill does nothing to improve affordability.

[01:00:14] It doesn't save tenants money, and it may instead actually make the problem worse. If the situation is drug out further, the cost could continue to accrue for the leasee. It ignores the reality that landlords have their own obligation, mortgages, maintenance, utilities, employees.

[01:00:36] Mr. Speaker, do we really think that the landlord, their employees that work for them, are they going to be willing to wait 14 days to get paid because the money's not coming in to the landlord? Making rent harder and slower to collect will have a chilling effect on the rental market.

[01:00:56] Fewer people will have or want to enter the residential rental business, and many existing providers may pause development and leave the market altogether. Mr. Speaker, there are instances of that happening around our state now, that people are getting out of the rental business.

[01:01:16] And rather than driving out bad actors, these policies risk pushing out responsible landlords or forcing them to become more rigid in their policies. and I've heard that as well, Mr. Speaker, that, well, I'm being pushed in a corner, so now where I once extended leniency, I'm not going to be able to do that anymore.

[01:01:36] So, Mr. Speaker, ladies and gentlemen of the House, the fundamental question for each of us and the governor, should these bills reach your desk, is simple. Do they make housing more affordable or increase supply? And the answer is no, and they work against both those goals. Thank you, Mr. Speaker.

[01:01:56] Shall the bill pass? Close the roll.

[01:02:13] Ayes 63, noes 36. Ayes 63, noes 36. The bill passes. House Bill 27 relates to overtime for certain employees, domestic workers. Shall the bill pass? Clerk will close the roll.

[01:02:40] Ayes 62, noes 35. Abstentions 1. Ayes 62, noes 35. The bill passes. Abstentions 1. The bill passes. Top of page 9, House Bill 84 before you now relates to electric utilities and licensed suppliers of electricity, regional transmission entities annual report. Shall the bill pass? Clerk will close the row.

[01:03:13] Ayes 92, noes 7. Ayes 92, noes 7. The bill passes. House bill 95 relates to the Virginia Landlord and Tenant, Landlord, Residential Landlord and Tenant Act, Landlord Remedies, Non-Compliance with Rental Agreement, Payment Plan. Shall the bill pass? Clerk will close the roll. Ayes. 64, noes. 35. Ayes. 64, noes. 35. The bill passes. House Bill 238 relates to labor and employment, payment of wages, minimum wage, and overtime wages, misclassification of workers,

[01:03:53] civil actions. Shall the bill pass? Close the roll. Ayes. 64, noes. 35. Ayes. 64, noes. 35. The bill passes. Over on page 10, continuing House Bill's third reading regular, House Bill 339, now before you relates to employee protections wage and hour occupational health and safety and

[01:04:22] mining safety provisions shall the bill pass clerk will close the roll ayes 64 nos 35 ayes 64 nos 35 the bill passes house bill 469 directing the department of medical assistance services to amend autism competencies checklist regulations to allow positive behavior support facilitators

[01:04:49] to conduct training sessions on such competencies shall the bill pass clerk will close the roll Ayes 74, noes 24.

[01:05:07] Ayes 74, noes 24, the bill passed. House Bill 574, now before you, relates to Athletic Trainer Compact. Shall the bill pass? Kirk will close the row.

[01:05:25] Ayes 96, noes 2. Ayes 96, noes 2, the bill passed. House Bill 727, relates to local boards of social services, appointments, terms of office. Shall the bill pass? Kirk will close the row.

[01:05:50] Ayes 97, noes 1. Ayes 97, noes 1, the bill passes. House Bill 1377, printed calendar, 77 is by for the day, therefore next bill up for final passage, House Bill 165, which relates to the board for contractors, examinations, alternative languages.

[01:06:08] Shall the bill pass? Clerk will close the roll. Ayes 92, noes 6. Ayes 92, noes 6, the bill passes.

[01:06:25] Over on page 12, continuing third reading, regular House Bill 170, relates to real estate appraisers, educational requirements for licensure, fair housing, and appraisal bias course. Shall the bill pass? Clerk will close the roll.

[01:06:45] Ayes, ayes 81, noes 18. Ayes 81, noes 18, the bill passes. House Bill 312, now before you, relates to motor vehicle glass repair and replacement penalties. Shall the bill pass? Speaker.

[01:07:00] The delegate from Fairfax, Delegate Simon. Mr. Speaker, speaking to the bill. The delegate has the floor. Mr. Speaker, members of the House, this might be a very fine, fine bill that does nothing but bring some transparency to the windshield marketplace, but I don't know.

[01:07:16] I have some unanswered questions, Mr. Speaker. And given that all my questions weren't answered, I would encourage some of you to view this with skepticism, and maybe just for a little while, we all vote no on this bill when it comes up on the board. Thank you, Mr. Speaker. Shall the bill pass?

[01:07:38] Clerk will close the roll. Mr. Speaker, ayes 96, noes 3. Ayes 96, nose 3, the bill passes.

[01:07:58] I thought I was going to have to call a medic. Continuing, bottom of page 12, now before you is House Bill 329, relating to the Virginia Residential and Landlord and Tenant Act, Manufactured Home Lot Rental Act, retaliatory conduct prohibited.

[01:08:17] Shall the bill pass? Clerk will close the bill. Ayes 85, nose 13. Ayes 85, nose 13, the bill passes.

[01:08:33] House Bill 356 relates to the Department of Housing and Community Development. Local housing policy report to department. Shall the bill pass? Clerk will close the roll.

[01:08:53] Ayes 86, noes 13. Ayes 86, noes 13. The bill passes. House Bill 371 relates to the Virginia Commission to End Hunger membership. Shall the bill pass? The clerk will close the roll.

[01:09:18] Ayes 93, noes 6. Ayes 93, noes 6. The bill passes. House Bill 460 relating to the Department of Small Business and Supplier Diversity, Employment, Services, Organizations. Shall the bill pass? Clerk will close the roll.

[01:09:41] Ayes 90, no 6. Ayes 90, no 6. The bill passes. Top of page 14, but ultimately House Bill 1188 relates to the Virginia Boys and Men Advisory Commission established report. The legislation has an emergency clause on it.

[01:09:58] Shall the bill pass? Clerk will close the roll. Ayes 94, noes 4.

[01:10:15] Ayes 94, noes 4. The bill passes. And, Mr. Speaker, going back to page 6 of the printed calendar, if you're following that way, picking up House Bill 579, this legislation relates to interstate massage compact, education and examination requirements, compact commission membership.

[01:10:32] Shall the bill pass? The clerk will close the row. Ayes 96, noes 0, abstentions 1.

[01:10:49] Ayes 96, noes 0, abstentions 1. Who owns a massage business? Okay. Betsy Carr. What the hell? What are y'all doing up there in the probes?

[01:11:09] Mr. Speaker, members of the House. Next category, House bills on second reading, uncontested calendar. The uncontested calendar, beginning on page 14, approximately 40-ish bills in here.

[01:11:25] House Bill 544, legislation to amend and re-enact sections, two sections of the Code of Virginia and repeal another, all relating to the Commission on School Construction and Modernization, Revisions, Elimination of Sunset. The Legislation Report is committee on rules. The delegate from Virginia Beach, delegate, ask you. Thank you, Mr. Speaker.

[01:11:41] Mr. Speaker, speaking to the bill. The delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, HBE 544 is about keeping our focus on the buildings where our kids learn. It keeps the Commission on School Construction Modernization alive and strengthens its charge so Virginia does not turn away from the school construction crisis. This is merely about we are impending on an expiration of the sunset date.

[01:12:03] It merely expands that, makes it a standing body, and clarifies its role to track school facility needs statewide and recommends long-term funding and modernization strategies to the General Assembly. Help us with the body to engross this bill and pass it on to its third reading. Top of page 15, continuing with the block. House Bill 52, now before you, seeks to amend and reenact two sections of the Code of Virginia related to beneficial use of dredged material.

[01:12:24] This legislation report committing on agriculture, Chesapeake, and natural resources with amendments. Delegate for Mackermack, Delegate Blockson. Move the amendments. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. The amendment is agreed to. Thank you, Mr. Speaker. House Bill 52 simply expands where beneficial dredge spoils can be used.

[01:12:42] I hope it's the will of the body to engross the bill and pass it to his third reading. Continuing with the block, House Bill 65, it seeks to amend and reenact various portions of the Code of Virginia, all relating to the Apple Board repeal. Legislation, again, was reported to the Committee on Admiral Chesapeake and Natural Resources. Doug for Fairfax, Delegate Helmer.

[01:12:58] Thank you, Mr. Speaker. Mr. Speaker, you may have heard that an apple a day keeps the doctor away, but the apple industry no longer wants to pay to have you hear that, and so they've asked for us to end the apple board. And with that, the patient's going to stop eating apples. I hope it is well the body to engross the bill and move it on to its third reading.

[01:13:15] Thank you, Mr. Continuing with the block, page 16 of the printed calendar. Next up, House Bill 73. Legislation amend and reenact multiple sections of the Code of Virginia, all related to juvenile and domestic relations district courts, Petitions for relief of care and custody, custodians, legislation reporting for courts of justice.

[01:13:31] Delegate from Fredericksburg, Delegate Cole. Thank you, Mr. Speaker, speaking to the bill. Delegate, on the floor. Thank you, Mr. Speaker. House Bill 773 fixes two gaps in our relief of custody law. It clarifies that the courts may hear petitions from legal custodians, not just parents, and it requires petitioners to cooperate with social services before custody is transferred.

[01:13:51] These changes help stabilize families, reduce unnecessary foster care placements, and align the law with current practice. And this very fine bill comes at the recommendation of the Virginia Commission on Youth. I hope it will be the pleasure of the body to engross the bill and pass it on to its third reading. Next up in the uncontested block is House Bill 118, legislation to amend and reenact Section of the Code of Virginia, related to Discovery, Methods of Delivery.

[01:14:12] This legislation also reported to the Committee for Courts of Justice, this time with an amendment of Nature Substitute. Delegate from Fairfax, Delegate Keyes Gomara. Mr. Speaker, I move the substitute. Shall the substitute be agreed to all those in favor, say aye. All those opposed, no. substitute is agreed to. Mr. Speaker House bill 118 works to improve access to evidence in criminal trials hoping to provide fairer access for all defendants.

[01:14:37] I hope that it is the will of the body to move this bill to be engrossed and passed through the third read. House bill 123 and the printed calendar is out of the block so next up in the block top of page 17 of the printed calendar is House bill 128. Legislation amend and reenact section Dakota Virginia relating to certification of ancillary traffic infractions. Legislation reports of the Committee of Courts of Justice.

[01:14:58] Delegate from Albemarle, Delegate Carlson. Thank you, Mr. Speaker. Speaking to the bill. Delegate, that's the floor. House Bill 128 streamlines court proceedings by allowing courts to certify ancillary offenses up with felonies, along with the consent of the Commonwealth's attorney and the defendant. It reduces duplicative court appearances and saves money for taxpayers.

[01:15:18] It's the same process that's used currently for misdemeanors. And I've actually talked longer than the bill itself. So with that, I ask that the body engrossed the bill and pass it to its third reading. House Bill 131 is out of the block to the regular calendar. Therefore, continuing with the uncontested block is House Bill 133, legislation to amend and reenact various sections of the Code of Virginia, all relating to electronic execution of the state planning documents, Uniform Electronic Wills Act, a legislative board committed courts of justice with an amendment, nature substitute. That is from Fairfax. Delegate Simon. Mr. Speaker, I move the committee substitute.

[01:15:48] Shall the committee substitute be agreed to? All those in favor, say aye. Aye. All those opposed, no, the substitute is agreed to. Mr. Speaker, as the clerk said, this bill with the substitute now is the Uniform Electronic Execution of Wills Act. This will allow people in the Commonwealth to execute their wills by electronic means. It was the pleasure of the body to engross the bill and pass it to its third reading. Over on page 18, we pick up next in the block, House Bill 148, with the legislation to amend and reenact the Act of the Code of Virginia relating to seizure, forfeiture, and destruction of property used in connection with the exploitation and solicitation of Children, the Legislation Report Committee for Courts of Justice, Delegate Williams, Legislation HB 148, also was reported with Amendment Nature Subject.

[01:16:27] The Delegate from Patrick County, Delegate Williams. Yes, Mr. Speaker, move the substitute. Shall the substitute be agreed to? All those in favor say aye. Those opposed no, the substitute is agreed to. Mr. Speaker, I'd like to yield the floor to the Delegate from Lynchburg to introduce this bill. The Delegate from Lynchburg, Delegate White.

[01:16:43] Thank you, Mr. Speaker. So HB 148 is a bill that protects the most innocent among us, our children. This legislation strengthens Virginia's ability to seize, destroy the tools of evil.

[01:17:00] Yes, the cameras, the computers, and devices that the predators use to exploit our children. Under the current law, these instruments of abuse sit in evidence lockers at police stations and others. and they find their way back into circulation this bill ends that hb 148 ensures that once forfeiture is established courts will order the complete destruction of this equipment not storage not auctions destructions because there's no uh legitimate use for the uh for these

[01:17:39] devices that will harm our children mr speaker many of us have probably heard this before but in the Word of God, Jesus speaks not once, not twice, but three times in the first three books of the New Testament. Jesus tells us that whosoever causes one of these little ones to stumble, it will be better for them to have a millstone hung about their neck and cast into the sea.

[01:18:11] Virginia, we must do our part. Mr. Speaker, I move that this bill be engrossed and passed on to his third reading. Thank you. Continuing with the uncontested block, House 249 is out of the Blocked to the regular calendar, therefore next up, top of page 19, House Bill 163.

[01:18:29] As legislation amend and reenact various portions of the section of the code related to notarization, filing recordation of certain land records. Duties of notary or settlement agent, acknowledgement and satisfactory evidence of identity. Requirements for commission or recommission of notary, clerk of circuit courts to establish property alert notification system.

[01:18:47] Legislation board committee for courts of justice with amendment nature substitute. Delegate from Fairfax, Delegate Simon. Mr. Speaker, I move the committee substitute. shall substitute be agreed to all those in favor say aye aye those opposed no substitute is agreed to uh mr speaker members of the house this bill is a bill it's designed to try and um get take care of and reduce the problem of deed fraud in the commonwealth it does it by doing three things you heard the clerk talk about uh the first thing it does is it requires uh clerks offices that have an electronic recording and filing system to establish an alert system so folks can get an electronic alert if somebody goes and records anything having to do with their property second thing it does is requires greater training for notaries they have to actually go through a course and certify that they've been trained in how to detect and prevent fraud

[01:19:27] and learn some basics about notarization. And the third thing it does is require settlement agents to exercise due care in ascertaining the identity of folks that are purporting to sell real property. It was the pleasure of the body to engross the bill and pass it on to its third reading. Next up in the block is House Bill 185, legislation to amend and reenact the Excessive Code of Virginia relating to orders closing a proceeding or sealing a record, petitions for review.

[01:19:49] This legislation was supported by the Committee for Courts of Justice. Delegate from Chesterfield, Delegate Mater. Thank you, Mr. Speaker. Speaking to the bill. Delegate has the floor. HB 185 is a Boyd-Graves conference bill. Court proceedings are generally presumed to be open and accessible, but judges have a fairly broad discretion to close court or seal filings.

[01:20:11] When they do so, the process to appeal such a decision is complex, unclear, and offers no promise of speedy resolution. This bill will establish an expedited method for appealing the closure of a court proceeding or sealing of a record. This bill is about transparency, accountability, and accessibility.

[01:20:33] I ask it be the will of the body to engross the bill and pass it on to its third review. Next up is House Bill 198. Fairfax, Delegate Simon. Mr. Speaker, will the delegate yield for a question? Will the delegate yield for a question? The delegate will yield. The delegate will giggly yield. So, Mr. Speaker, I would ask the delegate, I'm looking at this bill here, And I noticed as I was reading through it, it's got something that looks like a foreign language to me.

[01:21:00] It talks about doing something sui sponte. Can you tell us what sui sponte means? So, Mr. Speaker, this is Latin. And it is, in this particular instance, in 8.01-670.3, it talks about the circuit court issuing sui sponte, An order closing, a proceeding, or sealing a record, it simply means that the court can do this on its own accord and not by a motion.

[01:21:35] Mr. Speaker, will the delegate yield for an additional question? Will the delegate yield for an additional question? The delegate will not yield. She's done playing. Mr. Speaker, speaking to the bill. The delegate has the floor.

[01:21:51] Mr. Speaker, I would just say that this is an excellent bill. I like it a lot. I think that it's a good lesson to see that sometimes using the English phrase in a bill or piece of law will take more words and it opens itself up to more interpretation. So sometimes it's actually a pretty good thing when we use the foreign languages and other cultures that have a phrase that might do something in a more tidy way, even if it means putting it into the code.

[01:22:12] I think sometimes using foreign languages can be a really good thing to do. So I hope that everybody engrosses this bill and passes it on to its third reading. Mr. Clerk, Mr. Clerk. Mr. Speaker, House Bill 198 is the question.

[01:22:29] House will come to order. How are you doing? House Bill 198 seeks to amend and reenact two sections of the Code of Virginia relating to local governing body, review of decision by Board of Zoning Appeals, procedure for filing petition. Legislation also reports from the Committee of the Courts of Justice.

[01:22:46] Delegate Thomas. Thank you, Mr. Speaker. Mr. Speaker, House Bill 198 comes to the recommendation of the Boyd-Graves Conference. It is a cleanup bill that just streamlines timelines, necessary parties, the transfer of records, and response time. So it would be the will of the body to engross the bill and pass it on to his third reading.

[01:23:02] Over on page 20 of the printed counter, we continue with the uncontested block, House Bill 223, six to amend and reenact the sections of the Code of Virginia relating to public defender local funding for positions. Again, legislation reporting for the courts of justice. The delegate from Arlington, Delegate Hope. Thank you, Mr. Speaker. House Bill 223 clarifies that localities are permitted to fully fund public defender positions.

[01:23:22] I hope it would be the pleasure of the body to engross the bill and pass it on to its third read. House Bill 252 is legislation to amend and reenact the sections of the Code of Virginia relating to relocation or modification of easement by owner of service estate. Legislation Report Committee for Courts of Justice, Ms. Speaker, with amendments. Delegate from Fairfax, Delegate Watts.

[01:23:39] Mr. Speaker, I move the committee amendments. Shall the committee amendment be agreed to? All those in favor say aye. Those opposed, no. The amendment is agreed to. Thank you, Mr. Speaker. HB 252 is adoption of the Uniform Code for Relocation of Easements.

[01:23:54] It has been reviewed by the Boyd Graves Conference to make sure that it conforms with Virginia's practices as well as definitions of various public-related easements within Virginia. It provides a way by petition rather than by court action to move the easement when it is to the benefit of both parties.

[01:24:17] I hope it will be the pleasure of the body to engross the bill and pass it on to its third reading. Next up in the block is House Bill 276, legislation to amend and reenact a Section of Dakota-Virginia relating to members of the Virginia State Bar, rules and regulations relating to schedule of fees.

[01:24:35] Legislation report committed for courts of justice. Delegate from Scott County, Delegate Kilgore. Thank you, Mr. Speaker. Ladies and gentlemen, House Bill 276 removes the Virginia State Bar statutory cap of $250 and allows the Supreme Court the authority to set the dues rate by removing the statutory cap.

[01:24:55] Hopefully the pleasure of the House to engross the bill and pass it on to its third reading. Continuing with the block, House Bill 292 is legislation to amend and reenact Section of the Code of Virginia relating to Agricultural and Forestry Districts Advisory Committee membership. This legislation is reported to the Committee on Agricultural and Natural Resources.

[01:25:14] The delegate from James City County, Delegate Anderson. Thank you, Mr. Speaker. Speaking to the bill. The delegate has the floor. Thank you, Mr. Speaker. HB 292 is a bill brought to me by New Kent County. It's a simple bill that allows for local agricultural and forestry districts some flexibility for local officials.

[01:25:30] By allowing the Commissioner of Revenue or Chief Assessing Officer to participate on agricultural and forestal advisory committees by using a representative from their office. To be clear, these advisory committees are the committees that are simply doing the advising to the formal planning commission and governing body on creating, reviewing, modifying, renewing, or terminating agricultural and forestal districts.

[01:25:50] This bill keeps the existing committee structure in place and just allows local officials to send a designee, improving continuity and quorum. I will all say that this representative is not authorized to be on the planning commissioning, which makes all final decisions. With that, Mr. Speaker, I move that the bill be engrossed and passed to its third reading. Continuing with the block on top of page 22, House Bill 306 is a legislation to amend and reenact section of the Code of Virginia relating to wills and estates, claims to exempt property and allowances.

[01:26:17] Legislation for the Committee for Courts of Justice with the amendment nature substitute. Delegate from Chesapeake, Delegate Carnegie. Thank you, Mr. Speaker. Speaking to the bill. Delegate has the floor. Mr. Speaker, I move the committee substitute. Shall the substitute be agreed to? All those in favor, say aye. All those opposed, no. Substitute is agreed to.

[01:26:33] Thank you, Mr. Speaker. House Bill 306 updates the deadlines for statutory exemptions, including the family allowance, the exempt property allowance, and the homestead allowance in estate proceedings. By tying the filing period to the start of the formal estate process, which includes either the opening of probate or the appointment of an administrator, this bill addresses the inequities in the current law, which can lose access to these protections due to delays in probate proceedings beyond their control.

[01:27:01] By aligning the deadline with the administration of the estate, this bill ensures fairness, increases access to essential benefits, and makes estate administration more practical and equitable. I

hope that it is the pleasure of the body to engross the bill and pass it on to its third reading. A new bill, same patron, House Bill 307 this time, seeks to amend and reenact sections code of Virginia related to administration of estates, claims against decedent or estate.

[01:27:23] Legislation, again, report to the Committee of the Courts of Justice. Delegate from Chesapeake. Delegate Carney. Thank you, Mr. Speaker. Speaking to the bill. The delegate has the floor. Thank you, Mr. Speaker. House Bill 307 creates an optional and simplified process for public notices to creditors when handling claims against an estate.

[01:27:40] When a creditor reaches out, the representative presents proof to the court and the process is complete. This bill also provides additional protection against personal liability for the estate fiduciary. My hope is that it's the pleasure of the body to engross this bill and pass it on to its third reading. House Bill 326 would authorize the Commonwealth to convey Fort Whitworth to the Petersburg Battlefields Foundation.

[01:28:02] This legislation reported to the Committee on Agriculture, Chesapeake, and Natural Resources. Delegate from Dinwiddie, Delegate Pope Adams. Thank you, Mr. Speaker. Speaking to the bill. Delegate has the floor. Thank you, Mr. Speaker. HB 326 allows the Commonwealth, with the Governor's approval, to transfer Fort Whitworth, a small parcel of state-owned land located on Central State Hospital's campus in Dinwiddie, to the Petersburg Battlefields Foundation.

[01:28:26] The Petersburg Battlefields Foundation is a 501c3 with a demonstrated track record of preserving, interpreting, and maintaining historic resources for public benefit. This transfer will help ensure long-term stewardship of the site while relieving the Commonwealth of future maintenance responsibilities.

[01:28:45] This bill does not affect surrounding properties and follows the established statutory process for the conveyance of state land. Mr. Speaker, I hope it is the will of the body to engross this bill and pass it to his third reading. The delegate from Fairfax, Delegate Simon. Mr. Speaker, will the delegate yield for a question?

[01:29:00] Will the delegate yield for a question? Yes. The delegate will yield, reluctantly. Mr. Speaker, this is a real estate transaction, so it's something that's sort of right up my alley. I was listening carefully to the delegate's presentation where she described a small parcel that was being conveyed.

[01:29:18] You know, in real estate contracts and deeds and things, we need a little more specificity than just a small parcel. So I'd ask the delegate if she could tell us exactly how much and what size this parcel is that's being conveyed to this 501c3 organization. Yes, Mr. Speaker, it is 3.35 acres.

[01:29:36] Mr. Speaker, will the delegate yield for an additional question? Will the delegate yield for an additional question? Yes. Mr. Speaker, I'd ask the delegate that acres are sort of hard for me to picture. Could she tell us what that is in square feet? Mr. Speaker, I would answer the delegate, whose question was, how many square feet are in 3.35 acres, and I would answer the delegate and say that it is 143,748 square feet.

[01:30:22] I thank the delegate, Mr. Speaker. The delegate from, oh, I'm sorry, go ahead, Mr. Clerk, you threw me all off. Mr. Clerk. House Bill 332, new legislation that seeks to amend the Code of Virginia relating to teacher licensure, three-year license to teach career and technical education, or dual

enrollment courses, public high schools legislate support committee on education with amended nature substitute.

[01:30:49] Director from Roanoke City, Delegate Rasool. Thank you, Mr. Speaker. Mr. Speaker, I ask we adopt the committee substitute. Shall the substitute be agreed to? All those in favor say aye. Aye. All those opposed, no. Substitute is agreed to. Thank you, Mr. Speaker. What this bill does not do is ban chat GPT from the House floor.

[01:31:06] What it does do is it expands opportunities to have those that are qualified college professors teach dual enrollment courses. It would be the pleasure of the body to adopt the bill and pass it on to its third reading. House Bill 344 has legislation to amend the Code of Virginia relating to property under common ownership creation of easements.

[01:31:26] Legislation, again, report committee for courts of justice. Delegate from Loughton, Delegate Martinez. Thank you, Mr. Speaker. HB 344 creates a new code section allowing a property owner to create easements on their own land that would outlast their ownership and apply even if they own both properties.

[01:31:44] This would create a more durable easement that avoids problems and complications at transaction closings. It specifically applies going forward and does not apply to any easements prior to the effective date of this bill.

[01:32:01] This is also a recommendation of the Board Graves Conference. Mr. Speaker, I move that the bill be engrossed and pass to its third reading. Next up in the block is House Bill 363, a legislation to amend and reenact.

[01:32:17] Section of the Code of Virginia relating to the Commonwealth of Virginia Innovation Partnership Act, Regional Innovation Fund, Commonwealth Commercialization Fund, matching funds. Legislation reported to the Committee on Appropriations. The delegate from Chesterfield, Delegate Doherty. Thank you, Mr. Speaker.

[01:32:32] Speaking to the bill. The delegate has the floor. Mr. Speaker, members of the House, House Bill 363, which reported to the floor in unanimous vote from the Appropriations Committee, provides that for purposes of the Regional Innovation Fund and the Commonwealth Commercialization Fund, any awards of $100,000 or less shall not require matching funds.

[01:32:52] This bill gives the Virginia Innovation Partnership Corporation, or VIPC, greater flexibility to use its currently appropriated budget to more easily respond to the research and innovation needs of the Commonwealth. Many researchers and innovators don't have access to the large matching funds requirement that is currently in the code.

[01:33:09] This language will unlock a pathway for very worthy and innovative projects to make their way to VIPC for earlier consideration, while leaving the matching fund requirement in place for projects that can more easily access the matching capital funds. This will allow for more startup companies and researchers from R1 and R2 universities in Virginia to access the additional market success through innovation, while getting real-world products and life-changing medical treatments to market. Given the recent attacks directed on research at the federal level, this code change will allow Virginia to respond favorably to the innovation that flows from the Commonwealth, propelling us to be the best state in the

[01:33:47] country for research. Mr. Speaker, I move that this bill be engrossed and passed to its third reading. The delegate from Fairfax, Delegate Simon. Mr. Speaker, will the delegate yield for a question? Will the delegate yield? I enthusiastically yield. The delegate enthusiastically So, Mr. Speaker, I heard during the presentation that this is targeted at both R1 and R2 state universities who might have research needs.

[01:34:10] Can you tell us the difference between an R1 and an R2 university and maybe give us some examples? Sure, Mr. Speaker. I would answer the delegate that R1 universities are considered very high research activity universities. They spend significantly more in research and development and award more doctorate degrees than R2 universities.

[01:34:30] And so then R2s are considered high research activity institutions. R1s are often large and competitive research powerhouses, while R2s offer a balance of teaching and research, usually with smaller classes and more mentorship opportunities, making R1 ideal for aspiring top tier researchers, and R2s better for those seeking a more balanced experience.

[01:34:54] Thank you, Dolly. Oh, an example. She said, she said, she said, he said he good. He said he good. Okay, I'm good. Mr. Speaker, members of the House, turn to page 24, continuing.

[01:35:15] Second reading, uncontested calendar blog. House Bill 401, legislation to amend and reenact sexual code of Virginia related to public institutions of higher education and other educational and cultural institutions. Virginia Museum of Fine Arts, Powers of the Board. Legislation report committee on education.

[01:35:30] Delegate from Virginia Beach, delegate to ask you. Thank you, Mr. Speaker. Mr. Speaker, speaking to the bill. The delegate has the floor. Thank you. HB-401 is a clarifying bill that codifies the Virginia Museum of Fine Arts' ability to keep its galleries and grounds open, safe, and accessible to every Virginian, free of charge. It doesn't expand the board's power.

[01:35:47] It makes their existing authority crystal clear in the code. Again, it clarifies the VMFA's board of trustees' authority, so it's consistent with other public educational and cultural institutions, and affirms that the board can manage the museum and its grounds and set reasonable regulations and fees related to how the property is used while keeping general admission free to the public.

[01:36:04] I hope it's the will of the body to engross this bill and pass it off to its third reading. Next up in the block is House Bill 445, Legislation Amendment, Reenact, Sextrous Code of Virginia, related to exemptions from garnishment, exemptions in bankruptcy proceedings, disposable earnings. Legislation Board of Trustees for Courts of Justice. Delegate from Fairfax, Delegate Simon.

[01:36:21] Mr. Speaker, members of the House, this bill settles a dispute or a difference in interpretation between the Eastern District and the Western District of Virginia when deciding whether funds discharged in bankruptcy could be withheld from garnishment subject to section 34.29. It resolves it in favor of the Eastern District's approach, which is more consumer-friendly.

[01:36:38] I hope it would be the pleasure of the body to engross the bill and pass it to its third reading. House Bill 474, now before you, seeks to amend and reenact sections of the Code of Virginia relating to real estate with delinquent taxes or liens appointment of special commissioner increases required value. Legislation reportability on finance with amendments.

[01:36:55] Delegate from Roanoke City, Delegate Rasul. Thank you, Mr. Speaker. I move the committee amendment. Shall the amendment be agreed to? All those in favor, say aye. Those opposed, no. The committee amendment is agreed to. Thank you, Mr. Speaker. Ladies and gentlemen of the House, this simply increases from $75,000 now to $125,000. Parcel that has delinquent taxes the Special Commissioner can convey to the localities, the land bank.

[01:37:15] Hope he had a pleasure to embody it to engross the bill and pass it on to his third reading. Delegate from Scott County, Delegate Kilgore. Yes, Mr. Speaker, may House Bill 474 be moved to the regular calendar after engrossment for tomorrow's third. Without objection. So a member may vote. Without objection.

[01:37:32] Continuing with the calendar, House Bill 488 now before you, legislation amended and reenacted several sections of the Code of Virginia relating to wage garnishment, sales tax, debt. Legislation reported again from the Committee on Finance, this time with amendment to substitute.

[01:37:47] Delegate from Norfolk, Delegate Hernandez. Thank you, Mr. Speaker. I move the committee substitute. Shall substitute be agreed to? All those in favor say aye. Those opposed, no. The substitute is agreed to. Thank you, Mr. Speaker. This is a consumer protection law. Under current law, the Virginia Tax Department has a somewhat terrible power where they can garnish 100% of someone's wages, 100%.

[01:38:08] So what this bill would do is establish a cap of 25% so that people still have resources for the necessities of life. I ask that we engross the bill and pass it along to a third reading. Continuing with the second reading on Contested Calendar Block, House Bill 510.

[01:38:24] Legislation to amend and reenact the Section of the Code of Virginia related to the Uniform Power of Attorneys Act, agent's duty of disclosure. Legislation reported to the Committee for Courts of Justice with an amendment. Delegate from Fauquier, Delegate McAuliffe. Thank you, Mr. Speaker. I move the committee amendment. Shall the amendment be agreed to? All those in favor, say aye.

[01:38:41] Aye. All those opposed, no. The amendment is agreed to. Delegate from Fauquier, I guess. Thank you, Mr. Speaker. HB 510 is aimed at preventing elder abuse and theft by ensuring that the agent's duty of disclosure for financial and other transactions is in every single document.

[01:39:01] As of right now, we can do this by protecting seniors in their estates from the subvention theft by the agent who's acting as their power of attorney by ending blanket non-discosure provisions in any POA contracts. So I hope, Mr. Speaker, it is the will of the body to engross the bill and pass it to its third reading.

[01:39:20] The delegate from Fairfax, Delegate Simon. Mr. Speaker, will the delegate yield for a question? Will the delegate yield for a question? Mr. Speaker, the delegate would say that given the fact that this went through the delegate's committee and subcommittee, I'm surprised he has more questions, but I do yield.

[01:39:37] Ooh. Delegate, will you? Mr. Speaker, this is the second time that's happened to me. I should learn better, but I would still ask the delegate. I noticed that your bill, as you say, requires the person granting the power of attorney to sign initial next to this waiver of disclosure provisions, or they could designate someone to sign for them, but it has to be done in their conscious presence.

[01:39:58] And I was wondering, I know that if you could just tell us a little bit more about how that conscious presence test works and what the tests are, how someone would ascertain their conscious

presence. Mr. Peter, I thank the delegate for the question. So Virginia, in Virginia, you have a valid will if it is signed in the conscious presence of a witness.

[01:40:16] What that means here is that the witness sees the will being signed to their senses, which is in person, and they have to be able to see it or hear it if they are blind. This has to happen in person, not Zoom, not with any other tool.

[01:40:33] And so the affirmative signature of the elder must be witnessed by, on each of these, by someone who has passed that conscious presence test, which I would say is more than can be said for most 7 a.m. committee meetings. So I would say that it does get the job done, Mr. Speaker.

[01:40:49] Mr. Speaker, I thank the delegate. Okay. Mr. Speaker, continuing second reading, uncontested calendar, block page 26. Now before you is House Bill 512, Legislation Amendment, the Code of Virginia related to the Secretary of Agriculture and Forestry, Virginia Farm and Forest Prosperity Plan report.

[01:41:07] Legislation Report, Committee on Agricultural, Chesapeake, and Natural Resources with an amendment. Delegate from Dinwiddie, Delegate Pope Adams. Thank you, Mr. Speaker. I move the House to adopt the committee amendment. Shall the amendment be agreed to? All those in favor say aye. Those opposed, no. The amendment is agreed to. Thank you, Mr. Speaker. HB 512, as amended, establishes the first ever comprehensive strategic plan to support the prosperity of farming and forestry.

[01:41:30] This bill requires that in each new gubernatorial administration, the Secretary of Agriculture and Forestry coordinate not only with the Secretary of Commerce and Trade, but also with stakeholders from the agriculture, forestry, and agribusiness community to develop and implement this plan.

[01:41:49] Best of all, this bill requires a progress report due to both the House and Senate no later than December 1 of year one. So, Mr. Speaker, I hope it is the will of the body to engross this bill and pass it to its third reading. Next is House Bill 528, Legislation to amend and reenact.

[01:42:09] Section of the Code of Virginia related to compromise of claim for death by wrongful act, approval without hearing. Legislation to support Committee for Courts of Justice. Delegate from Hampton, Delegate Thornton. Mr. Speaker, I rise to speak to the bill. The delegate has the floor. Bill HB 528 provides for a court to approve and enter a wrongful death settlement order without a hearing if all parties consent to it in writing.

[01:42:34] This resolves the need for an in-person hearing in many cases, which saves all parties and the courts time and money. The preceding judge, however, has the option to hear the case if he or she desires to.

[01:42:49] Mr. Speaker, I move to engross this bill to move to the third reading. Mr. Speaker. From Chesapeake, Delegate Hayes. Thank you, Mr. Speaker. Would a delegate yield for a question? Would a delegate yield for a question? Delegate yield? Delegate yield. Thank you so much, Mr. Speaker.

[01:43:07] Is a delegate aware out of all of the many sections of our code that we should always be conscious of the section that's affected by the bills that we submit? Does the delegate know what section this bill will affect?

[01:43:26] I thank the delegate for the question. Mr. Speaker. The delegate has the floor. That would be Section 8.01 through 55, Compromise of Claims for Death of Wrongful Act. Thank you, Mr. Speaker.

[01:43:44] Would the delegate yield for a further question? Would the delegate yield for a further question? Delegate will yield for another question. Delegate will yield. Mr. Speaker, is the delegate aware that there's a fiscal impact statement that accompanies this bill?

[01:44:00] The delegate is unaware that there is an impact statement accompanying this bill. Mr. Speaker, would the delegate yield for one last question?

[01:44:19] The delegate yields for last question. Has the delegate, Mr. Speaker, met with everyone on appropriations, including the chair of appropriations? To the question, the delegate has not met with every member on the appropriations committee, including the chair.

[01:44:38] However, the delegate has sent a letter and a statement to each member on the appropriations committee, including the chair. I thank the delegate. Okay.

[01:44:56] Next up in the block, page 20. That all are new people. Go ahead, Mr. Clerk. House Bill 555 is legislation to amend and re-enact Section Dakota, Virginia, related to signing of pleadings, motions, and other papers of a party.

[01:45:15] Certain information required. Legislation support committee for courts of justice. Amendment nature, substitute. Delegate from James City County, Delegate Anderson. Mr. Speaker, I move the committee substitute. Shall substitute be agreed to? All those in favor, say aye. All those opposed, no. Substitute is agreed to. Thank you, Mr. Speaker. Mr. Speaker, HB 555 is a technical bill at the request of the boy trade.

[01:45:32] House of Bities, Delegate from James City County, Delegate Anderson.

[01:47:20] Mr. Speaker, I move this committee substitute. Shall the substitute be agreed to? All those in favor, say aye. All those opposed, no. Substitute is agreed to. Thank you, Mr. Speaker. HB 555 is a technical bill at the request of the Boyd Graves Conference that adds that on any first pleading, the attorney's Virginia State Bar number, email address, and telephone number in any action on a court of record is required.

[01:47:42] It also requires that in the initial pleading, it must contain the email address and, if available the telephone number of the party who is not represented by an attorney. This is a simple bill that seeks to capture all the necessary information up front and an initial pleading and any action on court of record. With that, Mr. Speaker, I move that the bill be engrossed and passed to its third reading. Next up in the second reading on contested counterblock, House Bill 671, Legislation Amendment Reenact to Section Dakota, Virginia, this time related to jurors, exemptions from jury service upon request competency to perform a jury duty. Legislature, of course, does this with amendments. Delicate from Prince William.

[01:48:20] Delicate Mardonato. Thank you, Mr. Speaker. Yes. I move the committee amendments. Shall the amendment be agreed to? All those in favor say aye. All those opposed no. The amendment is agreed to. Thank you, Mr. Speaker. Mr. Speaker, HB 671 is a bill that clarifies current code language to provide that no person may be deemed incompetent to serve on a jury solely on the basis of disability if that person would otherwise be competent with reasonable accommodation. Current law can be interpreted in ways that either unnecessarily exclude individuals with disabilities from jury service or fail to clearly recognize when jury duty

[01:48:55] may be unduly burdensome despite accommodations. This gap fills the gap by affirming inclusion through reasonable accommodation while preserving the option for exemption when service is not feasible. I hope it is the will of the body and move to engross this and pass it to a third reading.

[01:49:12] Thank you, Mr. Speaker. Next up in the block is House Bill 716, legislation to amend the Code of Virginia Related Income Tax, Innocent Spouse Tax Relief, Legislation Reporting Committee on Finance. Delegate from Chesapeake, Delegate Carnegie. Thank you, Mr. Speaker. Speaking to the bill? Delegate has the floor. Thank you, Mr. Speaker. House Bill 716 ensures that all individuals who are wrongfully affected by tax debt from a spouse who filed joint tax returns are protected in state law. Sometimes a person is held responsible for tax mistakes they did not know about or were pressured into signing. This bill creates a state version of the federal innocent spouse rule so those people are not unfairly punished and make sure the debt is collected from the person who

[01:49:50] actually caused it. My hope it is the pleasure of the body to engross this bill and pass it on to its third reading. House Bill 854 on page 28 is out of the block. Over to the regular calendar. Next up in the block therefore is House Bill 960. Legislation to amend and reenact. Section of the Go to Virginia, land and personal property, taxes, valuation.

[01:50:08] Legislation is for committee on finance with an amendment. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. Speaking to the bill, I move the committee amendments. Shall the member be agreed to all those in favor, say aye. All those opposed, no.

[01:50:23] The amendment is agreed to. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. The purpose of House Bill 960 is to clarify that just like for the last 20 years, programmable computer equipment and peripherals used in business have been assessed for the personal property tax on the basis of the original cost to the taxpayer.

[01:50:45] The provision in the bill would add this to all other such assessments that are not otherwise indicated. It was determined that during the hearing that some localities already do this, some of them don't, some object, some don't, and so therefore the committee decided that it It was appropriate in this instance to have a reenactment clause which has just been agreed to by the body.

[01:51:09] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Continuing with the calendar, next up is House Bill 1084, Legislation to amend and reenact sections of the Code of Virginia related to collection, reporting of data related to To adults charged with a criminal offense punishable by confinement in jail or a term of imprisonment, Virginia Longitudinal Data System.

[01:51:37] Legislation for any courts of justice with amendments. Delegate from Norfolk, Delegate Hernandez. Thank you, Mr. Speaker. I move the committee amendments. Shall the amendment be agreed to? All those in favor say aye. All those opposed, no. The amendment is agreed to. The delegate from Norfolk. Delegate from Norfolk. Thank you, Mr. Speaker. This simple legislation would allow the Virginia Criminal Sentencing Commission to share pretrial data with the Virginia Longitudinal Data System.

[01:51:58] The idea here is that better data will help us understand the real-world impact of pretrial decisions and help guide us as we make evidence-based reforms in the future. I move that we engross the bill and pass it along to his third reading. Continuing with the block, now before you is House Bill 59, Legislation Amendment and Reenacted Section of the Code of Virginia relating to reapportionment,

reallocation of populations, civil commitment facilities, Legislation Report Committee on Privileges and Elections.

[01:52:22] Delegate from Powhatan, Delegate Wayne. Thank you, Mr. Speaker. House Bill 59 would require that persons who are civilly committed to a residential behavioral health facility administered by DBHD be counted and reallocated both for redistricting and reapportionment purposes to their last known address and locality.

[01:52:44] This is anticipatory that it's very likely we'll pass this constitutional amendment related to restoration of rights. I move that the House pass the bill and move it to its third reading. Continuing with the block, middle of page 30, House Bill 78, now before you, seeks to amend and reenact portions of the Code of Virginia all relating to elections, administration, duties of local electoral boards, certification of election, grounds for removal, civil penalty.

[01:53:13] Legislation reporting privileges and elections with amendments. Delegate from Newport News, Delegate Price. Yes, thank you, Mr. Speaker. I move the committee amendments. Shall the amendment be agreed to? All those in favor say aye. All those opposed, no. The amendment is agreed to. Mr. Speaker, for decades, the certification of election results has been considered a ministerial duty of the local election board.

[01:53:33] More recently, this has come into question, and Virginia came dangerously close to having 4.5 million Virginians' votes be nullified in the decision sent to Congress. HB 78 clarifies that certification of election results is, in fact, a ministerial duty of the local electoral board and allows for the state board to complete the certifications should the local board neglect their duty.

[01:54:00] I move that the bill would be engrossed and pass to a third reading. House Bill 113 is legislation to amend and reenact Section of the Code of Virginia related to elections offenses, soliciting or accepting bribe to influence or procure voter registration penalty.

[01:54:16] Legislation reporting privileges and elections with amendments. The delegate from Fairfax, Delegate Helmer. Thank you, Mr. Speaker. Mr. Speaker, I move the committee amendments. Shall the amendment be agreed to? All those in favor say aye. Aye. All those opposed, no. The amendment is agreed to. Thank you, Mr. Speaker. Mr. Speaker, last year, Elon Musk held a lottery to get voters to register in which he offered a million dollars.

[01:54:37] We looked at this collectively, thought we do not want this in Virginia, and this bill simply makes sure that that is illegal in Virginia. I hope it is the will of the body to engross this bill and pass it on to its third reading. And the last bill in the large second reading on contested calendar block is House Bill 1244, legislation amend and reenact section of the Code of Virginia relating to elections, absentee voting, emergency application for absentee ballot.

[01:55:01] Legislation again report committee on privileges of elections, this time with an amendment nature of substitute. Thank you, Mr. Speaker. I can move the committee amendments. Shall the amendment be agreed to? Shall the substitute be agreed to? All those in favor say aye. All those opposed, no. Substitute is agreed to.

[01:55:16] Thank you. Speaking to the bill. Thank you, Mr. Speaker. House Bill 1244, substitute amends the Code of Virginia, which governs the emergency absentee ballots to close a narrow consequential gap in state election law.

[01:55:32] Under the current law, a voter may request an emergency absentee ballot for two qualifying reasons. However, timely applied for when a voter wants to apply for an emergency absentee ballot to cover a voter where they timely apply for absentee ballot but did not receive it in time.

[01:55:50] and then who experience a qualifying emergency that prevents in-person voting on Virginia. House Bill 1244 closes this gap by ensuring the emergency absentee ballot process accounts for ballot delivery failures combined with last-minute emergencies to prevent voters from being disenfranchised by circumstances beyond their control.

[01:56:14] Mr. Speaker, I move that the bill be engrossed and passed to its third reading. The delegate from Scott County, Delegate Kilgore. Mr. Speaker, I have on page 16, House Bill 118, page 16, House Bill 118, and page 31, House Bill 113, I would ask that those be moved to the regular calendar after engrossment, Mr. Speaker.

[01:56:41] What was the second one on 31? House Bill 113. Gotcha. Thank you, Mr. Speaker. Without objection. Shall the bills be engrossed and pass the third reading? Oh, all those in favor say aye.

[01:57:00] Although the opposed, no. The bill's engrossed to pass the third reading. Speaker, continuing, new category. House bills on second reading regular, approximately three dozen or so in this category. Page 32, House Bill 264 is not before you. It's been re-referred.

[01:57:18] So the first bill in this new category is Delegate Ward's House Bill 1. House Bill 1 seeks to amend and reenact a portion of the Code of Virginia relating to minimum wage. Legislation originally reported to the Committee on Labor and Commerce, And then subsequently it was reported by the Committee on Appropriations.

[01:57:34] Delegate from Hampton, Delegate Ward. Thank you, Mr. Speaker. Mr. Speaker, House Bill No. 1 is a bill that will incrementally increase the minimum wage to $15 an hour. The purpose of this bill is to lift people out of poverty.

[01:57:50] This bill would boost wages for an estimated 421,000 Virginia workers. This is about uplifting families, many of whom are just struggling. This bill will help Virginians from every corner of the Commonwealth, 63% of those making under $15 an hour.

[01:58:11] Many are women, 54% of them are people of color. We started this journey back in 2020 to incrementally increase the minimum wage to $15 an hour until it reached $15 an hour. You might remember that's when the minimum wage we were paying was $7.25.

[01:58:33] Now, along the way, we built in all kinds of safeguards to ensure that the process was thoughtful, it was responsible, and it was done the right way. This bill included a pause when we reached $12 an hour unless the bill was reenacted.

[01:58:51] Now, one essential component of this bill that we peg Virginia's minimum wage to inflation through the Consumer Price Index. Going forward, the Commonwealth minimum wage will be, we hope, $15 an hour plus inflation.

[01:59:10] During this time, the agencies of the Commonwealth were asked to provide an assessment of options of implementing a minimum wage across the Commonwealth, including the feasibility of establishing a regional minimum wage.

[01:59:28] The results of the study were made public in the year of 2023, and Mr. Speaker, they are still online. Anyone who would like to see it, I will forward all that study to you. The studies were somewhat kind of inconclusive.

[01:59:46] However, they found that no evidence of harm would result from increasing the minimum wage. The study did note that regional minimum wage increases would perhaps further exacerbate inequities among regions, Mr. Speaker, that could be found on page 24 through 28 of this study for anyone that's interested.

[02:00:11] There was no increase in 2024, and since 2025, Virginia have only seen tiny inflation adjustments. Meanwhile, inflation has been aggressive.

[02:00:27] We are behind schedule, and our workers need a raise now. You might be concerned whether Virginia can afford this. Well, you only need to reflect on some of the last words of former Governor Glenn Youngkin.

[02:00:45] He said that the Commonwealth of Virginia's fiscal position is as strong as it has ever been. He said that we had run surplus after surplus after surplus. Yes, that's three surpluses, totaling $10 billion in excess revenue.

[02:01:06] Mr. Speaker, this is the time to lift struggling Virginians who work too hard to be living in poverty. Mr. Speaker, I ask that we engross this bill and send it on to its third reading.

[02:01:24] The delegate from Washington County, Delegate O'Quinn. Thank you, Mr. Speaker, speaking to the bill at the appropriate time. Thank you, Mr. Speaker. Mr. Speaker, I do understand the intent of this bill, and I'm certainly under no illusions that it's going to fail to engross.

[02:01:40] But I want us just to stop and think for just a moment. So, Mr. Speaker, you know, Republicans generally have always argued for a supply and demand approach on a lot of things. And certainly demand is absolutely outpacing supply in our Virginia workforce.

[02:01:56] And businesses have responded just as we predicted that they would. And you can find multiple businesses all around the Commonwealth advertising $15 an hour, $17 an hour, so on and so forth. I mean, talking to a lot of the manufacturers around the state, even in southwest Virginia, it's difficult to find one that isn't offering at least $20 an hour for walking through the door.

[02:02:18] And, you know, in the manufacturing sector, which is very healthy in the Commonwealth of Virginia, most workers make far in excess of that, which is what the market is dictating that they should earn. So I guess what I want us to stop and think about is who exactly are we putting in a tight spot with this bill?

[02:02:33] certainly not fortune 500 companies because they're paying well in excess of that and i know sometimes we like to you know talk about sticking at the big business that's not what this is going to do mr speaker who are putting in a tight spot it's the mom and pop shops it's the businesses with just a few employees it's those who want to give that 14 or 15 year old their first job so that they've got some spending money it's those small businesses that are operating on those razor-thin margins, and often, many times, Mr. Speaker, operating in the red. A lot of times, it's those who are attempting to operate a business after they've already retired from

[02:03:11] their primary occupation. Those are the folks that we're putting in a tight spot. But what we're really doing is causing those businesses, particularly those that are near a border state, to look at other states. And, Mr. Speaker, we have five border states plus the District of Columbia.

[02:03:27] I doubt many businesses are clamoring to move their business up to the District of Columbia, but they might be looking at those other five states, Mr. Speaker, and I can tell you that in our area where Tennessee is just mere steps away, there are a lot of people who are actively looking at that because not all parts of the Commonwealth are exactly the same. You know, you can get hokey and use alliteration, which I'll do. You know, Bristol isn't Bristow.

[02:03:52] Arlington isn't Abingdon. These areas are very, very different. And so what we're doing is artificially tinkering with the wage labor market that varies tremendously by the region that you might happen to be in. So payroll and employee benefits are almost always the highest expense that any businesses have to pay. And a lot of times they have to choose between operating in the red or closing up shop. But if they have to choose between that or moving their business to another state, they're going to choose that other state if they really want to keep their business open. And so we want all workers to be paid what they're worth and a wage that's commensurate with

[02:04:31] the job that they're doing. But the market has once again spoken, and wages have increased dramatically as the supply of workers has not kept up with the employer demand. So, Mr. Speaker, I would simply ask that we spare businesses yet another inflated expense as they struggle to stay afloat. Thank you, Mr. Speaker. Shall the bill be engrossed and pass the third reading? All those in favor say aye. Those opposed, no. The bill's engrossed and passed the third reading. Top of page Page 33, House Bill 134, now before you is legislation to amend and reenact two sections

[02:05:09] of the Code of Virginia relating to the Virginia Conservation Easement Act, definitions, federally recognized tribes, legislation reporting committee on agriculture, Chesapeake, and natural resources. Delo from Fairfax, Douglas Simon. Mr. Speaker, members of the House, House Bill 134 was a unanimous recommendation of the bipartisan commission on updating Virginia law to reflect federal recognition of Virginia tribes.

[02:05:29] What this bill does is not only have federally recognized tribes in Virginia, it allows them to hold conservation easements under current law a local government can hold a conservation easement on behalf of a landowner a non-profit organization can hold a conservation easement this adds again federally recognized indian tribes to the list of potential holders these these types of easements it's the pleasure of the body to engross the bill and pass it to its third reading so the bill being engrossed and passed the third reading all those in favor say aye those opposed no the bills are grossed and passed the third reading house bill 139 as legislation to bend and reenact various sections of the code of virginia relating to school board policies unpaid educational leave for certain employee association officers purchase of service

[02:06:08] credit legislation reporting on education with amendments the delegate from newport news delegate simons mr speaker i move the committee amendments shall the committee amendment be agreed to all those in favor say aye those opposed no the committee amendment is agreed to mr speaker hb 139 allows school board employees who are state employee association executive officers to take unpaid educational leave to represent teachers at meetings to advocate for increased school funding and improve teacher pay at no cost to school boards I hope it will be the will of the body to engross the bill and

pass it on to its third reading should a bill be engrossed and passed the third reading all those in favor say aye all those opposed no the bill is engrossed and passed the

[02:06:48] third reading over on page 34 now before you is House bill 182 legislation been reenacted Texas code of Virginia related to high school graduation requirements history and social studies credits certain substitutions permitted Legislation reporting on education, nature, substitute. Delegate from Loudoun County, Delegate Reed. Yes, Mr. Speaker, I move the committee substitute.

[02:07:05] Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. Committee substitute is agreed to. Thank you, Mr. Speaker. I'm not sure if you planned it this way for it to be the first day of Black History Month, but this particular piece of legislation would allow the substitution of World History I or World Geography and for schools to be able to offer African-American history or AP African-American studies at your graduation requirement.

[02:07:31] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Ellis Bill 183 speaks to amend and reenact the Texas Code of Virginia relating to a first-time homebuyer savings plan, townhouses' principal limits.

[02:07:52] Legislative support committee on appropriations with an amendment nature substitute. Delegate from Loudoun County, Delegate Reed. Yes, Mr. Speaker, I move the committee substitute. Shall the committee substitute be agreed to? All those in favor, say aye. All those opposed, no. The committee substitutes agree to. Thank you, Mr. Speaker. This is a modification of the first-time homebuyer savings program that was originally put in place in 2014 and has not been updated since then.

[02:08:14] What this legislation does is increases the amount that can be put into the program from $50,000 to $100,000. It better defines what a first-time homebuyer would be, and it also explicitly adds townhouse to the existing definition of single-family home and condo as an eligible home type.

[02:08:33] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 201 seeks to amend and reenact Texas Code of Virginia related to school board policies, parental notification, safe storage of prescription drugs and firearms in the household.

[02:08:52] Legislation reporting committee on education. Delegate from Fairfax, Delegate Cohen. Thank you, Mr. Speaker. House Bill 201 would require each local school board to develop and implement a policy to require annual notification to the parent guardian of each student enrolled in the local school division to be sent by email and text message within 30 calendar days of the first day of each school year by email and or text.

[02:09:18] This notification will remind parents of the importance of securely storing prescription drugs and also of their legal responsibility to safely store any firearm in the household where minors are present. This bill also requires each school board to make such parental notification available in multiple languages on its website.

[02:09:37] I ask that the bill be engrossed and pass to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 221 is now before you. This legislation seeks to amend and reenact two

sections of the Code of Virginia related to the requirement for appeals, bond, indigent parties, appeal of unlawful detainer.

[02:09:57] Legislation reporting to the courts of justice with amendments. The delegate from Arlington, Delegate Hope. Thank you, Mr. Speaker. I move the committee amendments. Shall the committee amendments be agreed to? All those in favor say aye. Aye. All those opposed, no. The committee amendment is agreed to. Mr. Speaker, members of the body in Virginia, a person is permitted to file an appeal Bill, if they don't like a ruling in the lower court to the circuit court, to file that appeal, a party must typically post a cash bond equal to judgment amount.

[02:10:18] However, for indigent Virginians, the ability to have this bond waived is the only way they can access the higher court. However, our current code contains a specific exclusionary gap. Those indigent tenants facing eviction for nonpayment of rent are expressly denied the opportunity to have their appeal bond waived.

[02:10:34] This bill before you fixes that by removing that specific exception. I hope we pleasure the body to gross the bill and pass it on to its third read. Shall the bill be engrossed and passed the third reading? All those in favor, say aye. Those opposed, no. The bill is engrossed and passed the third reading. House Bill 244 seeks to amend and reenact multiple sections of the Code of Virginia, all relating to robbery.

[02:10:51] This legislation supports committee for courts of justice with amendments. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. I move the committee amendments. Shall the committee amendment be agreed to? All those in favor, say aye. All those opposed, no. The committee amendment is agreed to. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. The bill before us is necessitated by the action that we took in the 2021 General Assembly to replace the single charge of robbery, which carried a penalty from five to life, no matter what the circumstances, to define instead five degrees of robbery,

[02:11:24] the first being a class two felony, 20 to life, the second, and that involves if there is serious bodily injury or death, The second is a Class III felony from 5 to 20 if someone uses or displays a firearm.

[02:11:42] The third involves physical force but not resulting in cellulose bodily injury or the using or displaying of a deadly weapon other than a firearm. That is a Class V felony with 1 to 10 being the sentence range.

[02:11:59] And finally, the fourth degree of robbery is one that uses threat or intimidation, but does not involve any deadly weapon. I lay that out because the sections before you, then all previous to now, have all had just one reference to robbery.

[02:12:18] This then appropriately inserts in those sections the appropriate degree of robbery that is in line with the other offenses of that section. I hope it will be the pleasure of the body to engross the bill and pass it on to its third reading.

[02:12:34] Over on Campbell County, Delegate Zier. Thank you, Mr. Speaker. I like Delegate Watts. I would like to support her bill. But I have a question, and I'm wondering, how does letting robbers out early make Virginia safer? And I'm wondering, how does this or who does this make life more affordable for, robbers or the taxpayers?

[02:12:54] So before we go further, I want to know who's benefiting. And I'm asking myself that question. Thank you, Mr. Speaker. Shall the bill be engrossed and passed the third reading? All those in favor say aye. Aye. All those opposed, no. The bill is engrossed and passed the third reading. Over on page 36, continuing second reading regular, House Bill 245 by the same patron.

[02:13:13] This legislation, however, seeks to amend various portions of Dakota, Virginia, related to jurisdiction of district courts in felony cases, specialty dockets, behavioral health docket act. This legislation was reported, like what was before, from the Committee for Courts of Justice.

[02:13:31] Delicate for Fairfax, Delicate Watts. Thank you, Mr. Speaker. House Bill 245 simply allows the General District Court or a Juvenile Domestic Relations Court to retain jurisdiction over a felony offense for the purposes of allowing the accused to complete a specialty docket or behavioral health docket.

[02:13:52] I hope it will be the pleasure of the body to adopt the bill and pass it on to its third reading. Should a bill be engrossed and passed the third reading? All those in favor say aye. Those opposed, no. The bill is engrossed and passed the third reading. House Bill 256 is legislation to amend the Code of Virginia relating to comprehensive plan environmental justice strategy.

[02:14:10] Legislation report committee on agriculture, Chesapeake, and natural resources. Delegate from Newport News, Delegate Simons. Thank you, Mr. Speaker. Mr. Speaker, HB256 allows localities above a certain population to consider adopting an environmental justice strategy in their comprehensive plan.

[02:14:26] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. Bill is engrossed and passed the third reading. House Bill 258 seeks to amend and reenact various sections of the Code of Virginia all related to early childhood care and education terminology.

[02:14:45] This is the Legislation Report Committee on Education with an amendment. Senator from Newport News, Delegate Simons. Thank you, Mr. Speaker. I move the committee amendments. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. The committee amendment is agreed to. Mr. Speaker, HB 258 simply updates the outdated and unclear term, family day home, to home-based child care in the Code of Virginia.

[02:15:10] I hope it will be the will of the body to engross the bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor, say aye. Aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 268, 6 to amend and reenact three sections of the Code of Virginia relating to fines and costs, spirit of limitation on collection, deferred payment agreement, legislation reported to the courts of justice with amendments.

[02:15:30] The delegate from Norfolk, Delegate Hernandez. Thank you, Mr. Speaker. I move the committee amendments. Shall the committee amendment be agreed to? All those in favor, say aye. All those opposed, no. The delegate from Norfolk, Delegate Hernandez.

[02:15:42] Thank you, Mr. Speaker. This is another consumer protection bill. Under current law, the statute of limitations that applies to the collection of court fines and fees can be as long as 60 years. It's 30 years when it's opposed in the general district court, 60 in the circuit court, which puts families into financial spirals. So this bill creates a uniform statute of limitations. That's 10 years from the date of the judgment or whenever the defendant is released. I will note that this does not at all change the statute of limitations for restitution, which is governed by a different section of the code.

[02:16:12] and love the bipartisan support, and the committee hope it will continue. I move that we engross this bill and pass it to its third reading. Should the bill be engrossed and passed the third reading? All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. On page 38, we pick up House Bill 273.

[02:16:28] It seeks to amend the Code of Virginia or land to law enforcement officers duty to render aid upon danger to life or limb civil immunity. Legislation Board of Security, Courts of Justice. Delegate for Fairfax, Delegate Helmer. Thank you, Mr. Speaker. Mr. Speaker, House Bill 273 simply provides an affirmative duty to perform aid.

[02:16:47] Most folks thought this was the law already for police officers. It's not. I appreciate the work that several law enforcement organizations have done with us to make sure we craft this carefully. And in case a law enforcement officer observes an injury or there's an officer-involved shooting, that they understand that they have an affirmative duty to provide aid.

[02:17:06] I hope it's the will of the body to engross this bill and pass it on to its third reading. Should a bill be engrossed and passed the third reading? All those in favor, say aye. All those opposed, no. The bill's engrossed and passed the third reading. House Bill 291 is legislation to amend the Code of Virginia Land and Department of Wildlife Resources, Fishing, Tackle, Recycling, and Disposal, educational webpage report.

[02:17:25] Legislation reported from the Committee on Agriculture, Chesapeake, and Natural Resources with Amendment Nature Substitute. Delegate from James City County, Delegate Anderson. Thank you, Mr. Speaker. I move the committee substitute. Shall the substitute be agreed to? All those in favor, say aye. All those opposed, no. The committee substitute is agreed to.

[02:17:41] Thank you, Mr. Speaker. HB 291 is a bill requested by Eastern Virginia Wildlife Rescue to address the impacts of improperly discarded fishing lines and tackle that are well known to entangle wildlife, damage aquatic ecosystems, and create avoidable safety hazards. This bill directs the Virginia Department of Wildlife Resources to create and maintain an educational webpage on responsible fishing, tackle, recycling, and disposal, periodically updating the information with stakeholders to ensure effectiveness.

[02:18:08] HB 291 is purely an educational bill. It does not restrict fishing practices, impose penalties, or mandate participation, simply makes anglers more aware of how to act responsibly and provide best practices for fishing line and tackle disposal and recycling. With that, Mr. Speaker, I move that the bill be engrossed and passed to its third reading.

[02:18:26] Should the bill be engrossed and passed to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed to third reading. House Bill 331 seeks to amend and reenact Section of the Code of Virginia relating to a payment of costs when proceedings deferred and defendant placed on probation. Legislation board, courts of justice with an amendment of nature. Substitute.

[02:18:43] Debate from Arlington. Debate McClure. Thank you, Mr. Speaker. Mr. Speaker, I move that the House adopt the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. Committee substitute is agreed to. Thank you, Mr. Speaker. Mr. Speaker, and the substitute, HB 331, makes clear that when a person has successfully completed all terms and

conditions set by the court for a deferred disposition, the court cannot enter a conviction solely based on the fact that the person has not paid all of their outstanding court costs.

[02:19:11] So just to be clear, this bill will not relieve anyone from having to pay costs. It simply ensures that no one receives a conviction rather than a dismissal solely because they owe costs. This creates a two-tiered system for those who can afford to pay and those who cannot, and this policy passed out of the body on a bipartisan vote last year.

[02:19:27] So Mr. Speaker, I move that the bill be engrossed and passed on to its third reading. Should a bill be engrossed and passed the third reading? All those in favor say aye. All those opposed no, the bill is engrossed and passed the third reading. Bill 333 seeks to amend the code of Virginia relating to public schools, programs, and courses of instruction, instruction on January 6th, insurrection, requirements, and limitations. Legislation reporting committee on education.

[02:19:49] Delegate from Fairfax, Delegate Hildebrand. Thank you, Mr. Speaker. Mr. Speaker, in presenting this bill, I actually want to read first from House Joint Resolution 713 that was adopted unanimously in a bipartisan manner in the 2021 special session. It says that whereas during the ceremonial counting of Electoral College votes by a joint session in the United States Congress on January 6, 2021, law enforcement officers at the Capitol estimated that 75,000 attendees of the Stop the Steal gathering surrounded the building.

[02:20:17] And as the count continued, participants turned violent and broke through barricades with hundreds of insurrectionists ultimately breaching doors and windows to enter the Capitol building. And whereas on the 7th, the Virginia National Guard quickly mustered personnel, many of whom unexpectedly had to leave their families and full-time jobs, and it goes on to discuss how they managed to close the breach and protect the integrity of our elections.

[02:20:41] Mr. Speaker, House Bill 333 is simple. It says that that history, that truth that we recognized unanimously, standing side by side by the brave National Guard and Virginia State Police, who that day stood in the breach protected our democracy that if a school board adopts teaching that in the public schools that they should acknowledge the truth that we here bore witness to in our resolution. Mr. Speaker I hope it is the will of the body to engross this bill and pass it on to its third reading. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those

[02:21:19] opposed no. The bill is engrossed and passed the third reading. House bill 350 is legislation to amendment ran access code of Virginia related exemption from jury service uh law enforcement officers fire marshals legislation reported community for courts of justice for the amendment nature of substitute. Identity from Rockbridge. Dr. McLaughlin. Thank you Mr. Speaker. Can I move the committee substitute? Shall the committee substitute be agreed to? All those in favor say aye. All those opposed no. Committee substitute is agreed to. Thank you Mr. Speaker. HB 350 would exempt fire marshals from jury service. Fire marshals are often involved in investigations of criminal cases.

[02:21:53] Our goal is to keep impartiality and integrity in our juries. Mr. Speaker, I ask that the bill will be engrossed and passed to its third reading. Should the bill be engrossed and passed to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed to third reading. Over on page four, do we pick up Delegate Mehta Parker's House Bill 382, legislation to amend and reenact Secretary of Dakota, Virginia, relating to school board chairman and vice chairman, additional annual salary amount.

[02:22:18] Legislation reporting committee on education. The Delegate from Alexandria, Delegate Benny Parker. Thank you, Mr. Speaker. House Bill 382 is a permissive bill. It updates our code to address inflation and differences amongst localities. State law limits the salary that a school board chair or vice chair can earn, and this amount was last increased 24 years ago in 2002 when it was raised from $1,100 to $2,000 more than a regular member.

[02:22:41] This bill would simply update that cap to address inflation. Again, the bill is completely permissive. A school board does not have to do anything differently unless they vote to do so. I move the bill to be engrossed and passed to its third reading. Should a bill be engrossed and passed to its third reading? All those in favor say aye. Aye. All those opposed, no. The bill is engrossed and passed to its third reading.

[02:22:57] House Bill 383, different pieces of legislation, seeks to amend and reenact sections of the code of Virginia relating to the State Council of Higher Education for Virginia or SHEV, exemption of certain courses and programs of instruction from certification requirement. Legislation, again, was reported to the Committee on Education. Delegate from Alexandria, Delegate Benny Parker.

[02:23:14] Thank you, Mr. Speaker. House Bill 383 is very similar to a bill that the House passed unanimously last year to to help support small Virginia businesses. Unfortunately, the Senate sent that bill to study, so that's why we're here again. Mr. Speaker, that almost might make someone question their life choices. The bill would create an exemption to Shev certification for courses on Scrum, Kanban, or other agile-based methodologies or frameworks.

[02:23:36] For anyone unfamiliar with those terms, as I was before this bill, these are frameworks used by project management professionals. The bill was brought to me by small businesses that offer two to three day workshops and don't offer any degree or credit, yet are regulated by Shev, like a college or university, which cost them tens of thousands of dollars per year.

[02:23:51] Notably, similar companies based in other states that offer the same classes online to Virginians are not regulated by SHEV. This bill simply levels the playing field and supports small businesses to keep and grow them in Virginia. I move the bill be engrossed and advance to its third reading. Should the bill be engrossed and pass the third reading? All those in favor say aye.

[02:24:06] All those opposed, no. The bill is engrossed and passed the third reading. House Bill 397 seeks to amend and reenact multiple sections of the Code of Virginia relating to clean energy and Community Flood Preparedness Market-Based Trading Program, Legislation Support Committee on Agriculture, Chesapeake, and Natural Resources, with an amendment, nature, substitute.

[02:24:22] That's from Alexander. Delegate a hearing. Thank you, Mr. Speaker. I move the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed no, the committee substitute is agreed to. Thank you, Mr. Speaker. This bill directs the Director of the Department of Environmental Quality to establish, implement, and manage an auction program to sell allowances into the market-based trading program consistent with the Regional Greenhouse Gas Initiative and the Clean Energy and Community Foot Preparedness Act.

[02:24:50] The director is directed to establish, implement, and manage the auction program. The bill requires certain regulatory actions necessary for the Commonwealth to rejoin. I move that the bill be engrossed and passed to its third reading. Delegate from Scott County, Delegate Kilgore.

[02:25:07] Mr. Speaker, speak to the bill. Delegate has the floor. Mr. Speaker, ladies and gentlemen of the House, it's been cold. I don't know if y'all have noticed, but it's been really cold. And I got a call this morning from my house that my heat pump outside heat pump was not working. So now we had to go on to emergency heat.

[02:25:24] So and the reason I'm telling you this story is, you know, next week we're all going to get a bunch of calls about why my electric bills, why my electric bill was so high for this last month. But you know what we're going to have to tell them?

[02:25:39] Well, not only was it high, Mr. Speaker, but we're also adding $4 to $5 a month to your bill just so we can go into this cap and trade with Reggie. So that's what we're going to have to tell them. So, ladies and gentlemen, we're not talking about affordability when we're passing legislation like this.

[02:25:58] We're just adding to people's bills, and we're not lowering bills like we said we're going to do. So, ladies and gentlemen, I hope that when you vote, when you consider your vote for this, that you remember that we came here this session to lower folks' electric bills, not raise folks' electric bills.

[02:26:20] Hope it be the pleasure of the House to not engross the bill. Should the bill be engrossed and pass the third reading?

[02:26:38] All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. However, on page 41, we come to House Bill 416, legislation to amend and reenact section of the Code of Virginia, relating to use of school buses for public purposes by local governing bodies, insurance reimbursement, legislation reporting on education.

[02:26:59] Delia Guzman. Thank you, Mr. Speaker. House Bill 416 fixes a problem because under current statute when school buses are used for county purposes, the county is required to get insurance coverage to lease the school division buses.

[02:27:18] While well-intentioned, this requirement has proven unworkable in practice. This bill addresses the problem by allowing localities to reimburse the school division for any insurance costs or additional costs incurred as a result of county use of school buses.

[02:27:33] House Bill 416 ensures that school divisions remain financially whole and protected from claims while also reducing administrative inefficiencies. I hope it is the will of this body to engross this bill and pass it to its third reading. Shall the bill be engrossed and passed the third reading?

[02:27:50] All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 423 is by for the day. So continuing on page 41 of the printing counter. Bill next is House Bill 427, seeks to amend and reenact sections of the code of Virginia relating to the State Council of Higher Education for Virginia, uniform, comprehensive data information system, Information on self-identified students who are parents.

[02:28:12] Legislation reported committee on education. Delegate from Henrico. Delegate Lovere-Bowley. Thank you, Mr. Speaker. This bill improves how Virginia understands and supports student parents in higher education by adding self-identified students who are parents to show statewide data system.

[02:28:28] Right now, these students are often invisible in our data, even though they are on the front lines balancing coursework, jobs, and other responsibilities. Better data means better policy and smarter

resource allocation, creating more effective student success strategies. This bill is about visibility, accountability, and giving parents, parenting students a fair shot at completing their degrees.

[02:28:47] Mr. Speaker, I move that the bill be engrossed and passed his third reading. - Shall the bill be engrossed and passed his third reading? All those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. - Up to page 42, we come to House Bill 449, legislation to amend and reenact various sections of the Code of Virginia relating to civil actions filed on behalf of multiple persons.

[02:29:04] Class actions, violation of Virginia Consumer Protection Act, award of damages. Legislation reporting committee for courts of justice with an amendment nature of a substitute. Delegate from Fairfax, Delegate Simon. Mr. Speaker, I move adoption of the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. Aye. All those opposed, no. The committee substitute is agreed to.

[02:29:22] Mr. Speaker, members of the House, this bill will cause Virginia to leave an exclusive club of two. Virginia and Mississippi were the only two states where you didn't have a class action remedy or class action procedure for multi-planet lawsuits in Virginia. So we'll leave Mississippi as the only state that doesn't have that as a procedure available for folks to combine their claims in state court and pursue remedies when they've been ripped off by larger companies or when they've suffered a wrong under the Consumer Protection Act or when they've got a cause of action that's just too difficult for them to pursue by themselves without the benefit of joining with other plaintiffs in a class action suit.

[02:29:57] We've passed this bill a couple of times. This bill is a little bit different than what we've done in years past. It does include the Consumer Protection Act for the first time. It does have some retroactive application, meaning that because this is just a procedure for adjudicating your claim, you can do that even if the harm occurred years ago if you're still within the current statute of limitations.

[02:30:16] Members of the House, I hope that you'll be the pleasure of the body to engross the bill and pass it to its third reading. Should a bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. Now before you is House Bill 521, legislation to amend and reenact two sections of the Dakota Virginia Land and the Virginia Marine Resources Commission, powers and duties wetlands. Legislation reported from the Committee on Agricultural, Chesapeake and Natural Resources with an amendment.

[02:30:40] Delegate from Norfolk, Delegate Hernandez. Thank you, Mr. Speaker. I move the committee amendment. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. The committee amendment is agreed to. Thank you, Mr. Speaker. This is a bill to protect Virginia's wetlands. It does two basic things. First, it codifies a no net loss standard. This will help ensure they were protecting wetlands against permitted development. Also, the bill sets up a work group to help us follow science-based recommendations for preserving wetlands going forward.

[02:31:08] I move that we engross the bill and pass it along to his third reading. Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Mr. Speaker, members of the House, House Bill 550 is by for the day. Therefore, we come to House Bill 786, legislation to amend and reenact the Code of Virginia relating to school boards' authority to prohibit sale of caffeinated beverages to students in public high schools.

[02:31:33] Legislation reporting committee on education with an amendment. And, Mr. Speaker, there is a floor substitute also by the bill's patron. The delegate from Bottle Tower, Delegate Austin. Mr. Speaker, I move that the committee reject the committee amendments, please. You're moving the committee amendments and ask that they be rejected?

[02:31:53] Yes, sir. I'd like to move the committee amendments and ask that they be rejected, please. Shall the committee amendments be agreed to? All those in favor say aye. All those opposed, no. The committee amendment is not agreed to. Okay. Thank you, Mr. Speaker. Mr. Speaker, I have a floor substitute. Clerk will report the floor of substitute. And, Ms. Speaker, the floor of substitute offered by the patrons available online to the public on the web page.

[02:32:13] It is now before you. Delegate from Biotatai, Delegate Austin. Yes, sir, Ms. Speaker. I'd like to move the floor of substitute, and I'd like to speak to the substitute. Shall the floor of substitute be agreed to? All those in favor say aye. All those opposed, no. The floor of substitute is agreed to. The delegate from Biotatai, Delegate Austin. Yes, sir, Ms. Speaker. The floor of substitute provides a definition of an energy drink to mean any drink that contains more than 55 milligrams of caffeine in combination with one or more stimulants or stimulant-adjacent substances, including ginseng, gerona, L-carnitine, and taurine.

[02:32:46] HB 57 is permissive and gives local school boards the authority to prohibit certain energy drinks in public schools. It's reported out of the committee 20 to 1, and I'd like to ask that the bill be, the committee substitute be approved and the bill be engrossed and moved to its third reading.

[02:33:03] So the bill be engrossed and passed the third reading. Are those in favor say aye? Are those opposed, no? Bill is engrossed and passed a third reading. Ms. Speaker, continuing with the calendar, House Bill 803. Now before you, seeks to amend the Code of Virginia related to repairs of maintenance of property, entering adjoining property, petition for entry.

[02:33:21] Legislation reporting committee for courts of justice with amendment nature to substitute. Delegate from Richmond City, Delegate Carr. Thank you, Mr. Speaker. I move the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. Committee substitute is agreed to. Thank you, Mr. Speaker. H.B. 803 allows a homeowner to petition the circuit court for entry to an adjoining property to perform necessary repairs, only if such repairs are impossible without access, and the homeowner has made reasonable efforts to gain access to the property.

[02:33:54] Hope it be the will of the body to engross the bill and pass it on to the third reading. Should the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Continuing second reading regular, top of page 44 of the printed calendar, following along that way, House Bill 859 now before you, six to amend and reenact section of the Code of Virginia relating to the Department of Education Farm to School Program Task Force, membership requirements report, legislation to support committee on education.

[02:34:19] Delegate from Richmond, Delegate Cousins. Thank you, Mr. Speaker. HB 859 amends the composition of the Virginia Farm to School Task Force, which is an existing program from the Virginia Department of Education that works to provide our kids with access to fresh and healthy food that is grown here in Virginia.

[02:34:35] The bill retains the VDOE's ability to appoint additional members to the task force as it deems necessary. Additionally, the legislation requires the task force to report to the General Assembly by

November 1, 2026, with a summary of their work and also recommendations on any changes that the task force deems necessary to increase student access to farm-to-school programs across the Commonwealth.

[02:34:59] And Mr. Speaker, I move that the body pass this bill to its third reading. The Grosso pass this bill to its third reading. Thank you very much. Shall the bill be engrossed and passed the third reading? All those in favor say aye. Aye. All those opposed, no.

[02:35:14] The bill is engrossed and passed to its third reading. House Bill 1,171 is bye for the day. Therefore, the next up second reading regular is House Bill 640, legislation to amend and reenact various sections of the Code of Virginia all relating to elections, challenges to voter or voters registration legislation word but from the committee on privileges and elections with the substitute delegate from fairfax delegate crazy thank you mr. speaker i move the substitute shall the committee substitute be agreed to all those in favor say aye aye all those opposed no the committee substitute is agreed to mr. speaker house bill 640 is about one simple principle election day should be for voting not confrontation under current law one voter at a polling

[02:35:53] place may challenge the eligibility of another voter on the spot in the middle of a busy polling location. That process may have made sense decades ago, but it no longer fits how modern elections are administered in Virginia. Today, eligibility questions are resolved through registrar review, data matching, list maintenance, and verification systems that occur before Election Day, using records, not accusations.

[02:36:17] But the polling place is not the right venue to adjudicate these disputes. One, poll workers do not have access to the records needed to resolve residency requirements. Two, they don't have time to conduct investigations. And three, voters should not have to navigate confrontation in order to cast a ballot.

[02:36:33] This bill will remove the outdated, rarely used, but high-risk process while keeping every meaningful safeguard for election integrity fully intact. Illegal voting remains illegal, registrars retain full authority, and election challenge processes remain. What the bill does is simple.

[02:36:49] It aligns responsibility with the people trained and equipped to handle it and allows polling places to operate smoothly, safely, and efficiently for every voter. Mr. Speaker, I ask that this bill be engrossed and moved on to its third reading. Fidelic from Bedford, Delegate Griffin. Mr. Speaker, would the patron yield for a question?

[02:37:06] Would the patron yield for a question? I yield. So if I go to the polling precinct and I know that somebody is fraudulently voting, I can no longer challenge that at the polls under this bill? Mr. Speaker, I would say that this bill does what I said it does.

[02:37:24] If there's a process, if you know somebody is fraudulent, you should go through the process prior to voting day, election day. Because there's no way that that could even be adjudicated at the polling place. You're asking a lot of these registrars during a busy day. Mr. Speaker, would the gentleman yield for another question?

[02:37:42] I yield. Couldn't the registrar ask for a photo ID with an address on it? Wouldn't that clear it up if there was any discussion on whether the person lived where they said they lived and were registered properly to vote? Delegate for Fairfax. Mr. Speaker, the registrar does ask for a voter ID, and they will show a voter ID to vote.

[02:38:02] Thank you, Mr. Speaker. Shall the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading. Next up is House Bill 773. This legislation seeks to amend the amend and reenact portion of the Code of Virginia related to elections.

[02:38:21] Absentee voting cure process legislation reported on privileges and elections. Delegate from Hampton, Delegate Thornton. Mr. Speaker, I rise to speak to the bill. Delegate, that's the floor. Since 2020, many voters have opted to vote absentee rather than in person, often for reasons related to disability, safety, or employment.

[02:38:43] In 2024, 51.4% of votes in the commonwealth were attributed to absentee voting. Bill HB 773 removes the requirement that absentee ballots be received by the Friday immediately preceding the day of election for the general registrar to implement the process of curing errors and failures to such ballots, to set such absentee ballots.

[02:39:16] The bill also moves the deadline for curing ERA's absentee ballot applications from noon, the third day after the election, to noon, the Monday after the election. Mr. Speaker, I move to engross this bill and pass it to the third reading.

[02:39:35] Delegate from Bedford, Delegate Griffin. Mr. Speaker, would the patron yield for a question? Would the patron yield for a question? So this bill would extend the time that a voter who improperly filled out an absentee ballot can come and cure their ballot?

[02:39:53] Mr. Speaker, to answer the question, that is correct. It extends the time so that the person submitting the absentee ballot does have an opportunity to have it corrected. Mr. Speaker, would the patron yield? With the patron yield. The patron will yield. Is the patron concerned that with an all-time distrust in our election system, that this is going to increase distrust in our election system when we extend out the time for absentee ballots to come in or to be corrected after the results of an election are already almost widely known at that point?

[02:40:28] Mr. Speaker, great question. However, this bill allows extra time so that the general register can also check for fraud. Thank you, Mr. Speaker. Shall the bill be engrossed and passed the third reading?

[02:40:43] All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. House Bill 968 as legislation to amend and reenact. Secretary of the Code of Virginia related to election results. Counting machine, readable ballots. Legislation reporting on privileges in elections with the substitute. Delegate from Newport News, Delegate Price.

[02:40:59] Yes, Mr. Speaker, I move the committee substitute. Shall the committee substitute be agreed to? All those in favor, say aye. Aye. All those opposed, no. The bill that the committee substitute is agreed to. Thank you, Mr. Speaker. Hand counts have error rates up to 25%, are costly, and take much longer than machine counting.

[02:41:16] In fact, it would take Fairfax County more than 200 days to hand count that ballot in a general election, and that's just not feasible. So House Bill 968 mandates that when a machine-readable ballot can be read by the voting machine, then it must be.

[02:41:31] It also outlines four types of situations in which a ballot may not be machine-readable and what should be done to ensure that ballot is counted appropriately. Mr. Speaker, I move that we would

engross the bill and pass it to his third reading. The delegate from Bedford County, Delegate Griffin. Mr. Speaker, would the patron yield?

[02:41:49] With the delegate, you. I yield. So, isn't it true that under federal law, if we're going to receive federal monies for our elections here in Virginia, that we have to use the machines, we can't do a hand count already, correct?

[02:42:05] Mr. Speaker, I would say that this bill outlines four types in which hand counts that can't be done and how they should be handled. And so, I don't know. You don't know?

[02:42:21] Yeah. Mr. Speaker, would the patron yield for another question? Would the patron yield? Yeah, but I would yield for a question for people that have read the bill. You don't know the bill. Mr. Speaker, my question would be, does this bill prevent an audit that's a hand count?

[02:42:39] Mr. Speaker, I would say no, it does not. Thank you, Mr. Speaker. Should the bill be engrossed and passed the third reading? All those in favor, say aye. All those opposed, no. The bill is engrossed and passed the third reading. Over on page 46, we come to House Bill 1014, Legislation to amend and reenact of various portions of the Code of Virginia all relating to incapacitated persons finding of a lack of capacity to understand active voting.

[02:43:02] Legislation report committee on privileges and elections. Delegate from Fairfax, Delegate Tran. Thank you so much, Mr. Speaker. House Bill 1014 requires the courts to determine with clear and convincing evidence that an individual placed under guardianship or conservatorship lacks the capacity to understand the act of voting before disqualifying them from voting.

[02:43:23] If the court does not make that determination, then the individual retains their right to vote. I hope it's the will of the body to engross the bill and pass it on to its third reading. Delegate from Bedford, Delegate Griffin. Mr. Speaker, would the patron yield? Would the patron yield? Yes, Mr. Speaker. Mr. Speaker, reading from the draft or the bill language, no person shall be deemed disqualified to vote due to a lack of capacity. Can a person without capacity still vote under this bill?

[02:43:49] Mr. Speaker, I would respond to the delegate by saying that a person that the courts has determined does not understand and have the capacity to vote is not allowed to vote. However, if the person is determined to have the capacity to vote, then they would be able to retain their voting rights.

[02:44:07] Mr. Speaker, will the patron yield? Patron yield. Yes, Mr. Speaker. So, Mr. Speaker, if I go to see my family member at the nursing home, and I know that something's off, they're not understanding the words coming out of my mouth, they're not understanding what century they're in, what country that they are in, or who they are, can they still vote under this bill?

[02:44:29] Mr. Speaker, I would respond to the delegate by saying, if you had listened to my explanation of the bill, that the courts make the determination, not any individual willy-nilly. Thank you, Mr. Speaker. Mr. Speaker, would the patron yield for another question?

[02:44:45] Would the patron yield for another question? I'll yield for a last question, Mr. Speaker. The patron will yield. Mr. Speaker, if a family member determines in speaking to their family member in a nursing home that they can't handle their money anymore, but they haven't gone before a judge, and and the the parent or the person in their family still can't doesn't understand where they are can they vote without getting that court order still mr speaker i would respond to the delegate by saying once again that

this has to be a determination made by the court just as conservatorship or guardianship determinations are also made by the courts thank you mr speaker

[02:45:22] mr speaker speaking to the bill the delegate has the floor thank you mr speaker uh this bill is out there you can go to a nursing home i'm speaking from experience because i had a family a family member in the last 12 months where this was going on and you go to visit the family member and they don't know where they are they they don't know really who they are and they don't know who you are and yet the democrats want them to be voting in our elections and then i said well does the patron understand that if the person can't even make financial decisions for themselves

[02:46:00] anymore, that they would still be able to vote under this. And she says, yes, you have to set up a court hearing. And I say, well, what if they can't take care of their finances? Yes, you have to set up a court hearing. What about when they're dealing with the early stages of Alzheimer's or when they're on a new medication where their mind's not quite right on Monday, but Tuesday, they're completely back. There might be a day where they're not really capable of understanding what's going on today, but they're capable of understanding what's going on tomorrow, in which case you wouldn't go to a judge and ask for them to have their vote taken away.

[02:46:36] I just, I was shocked. I want the people of Virginia to hear this Democrat bill. No person shall be deemed disqualified to vote due to a lack of capacity. Are you kidding me? Incapacitated people voting, felons voting, bills coming in after, ballots coming in after election day, 968, they didn't even know what the bill said.

[02:47:01] These are outrageous. And this is why people are losing trust in our election systems. We should not have incapacitated people that don't know what's going on around them voting. Mr. Speaker, I ask that the Democrats, our colleagues, please vote no on this. Thank you, Mr. Speaker.

[02:47:17] The delegate from Fairfax. Mr. Speaker. The delegate from Fairfax, Delegate Simon. Speaking to the bill. Delegate, that's the floor. Mr. Speaker, members of the House. So we saw this in a brief we heard recently where people quote things out of context, do part of the sentence, but don't read the rest of the sentence.

[02:47:34] So let me tell you the rest of the story. Let me tell you what this bill does, and this is not at all what's been spun up, all right? Right now, if you experience some of the things that the delegate described, you have a family member who's not able to recognize where they are. They can't handle their finances. They're no longer able to exercise regular duties of regular life.

[02:47:52] You go to court, and you seek guardianship or you seek conservatorship. And the argument is that the person you're seeking guardianship or conservatorship is incapacitated. They lack the capacity to continue to take care of their own personal affairs. Under current law, any finding like that, regardless of the reason, regardless of why it is that they're lacking the capacity to take care of their financial stuff, automatically rescinds their right to vote.

[02:48:15] All this bill says is when you go through that same process that you've always been required to go through, there needs to be a separate finding that's specific to their voting rights. Because there are people that, for various reasons, can't take care of themselves, they can't take care of their financial well-being, but they understand their preferences, they understand their political preferences, they know who the president is.

[02:48:34] They know that they don't want to see a president who belittles people that are suffering from disabilities. They know they don't want to vote for a president that goes door-to-door without a warrant arresting people. They have the capacity to know they don't want that, Mr. Speaker. And so they can lack the capacity to take care of their finances.

[02:48:51] They can lack the capacity to take care of medical decisions, and they can still have the capacity to vote. All we're asking is that a judge decide that on an individual basis. This is a very minor change. It's a very technical amendment, so it's already an existing process. just says, specifically when you're looking at the right to vote, don't automatically assume this person can no longer vote. Let's take a look and let's ask some specific questions about that one issue and make a finding. And if they're incapable of voting and the judge decides that, they won't be able to vote, Mr. Speaker. But if they are, then they will be. And this is about extending the franchise to all Virginians. I hope it'll be the pleasure of the body to engross the bill and pass it to its third reading.

[02:49:25] The delegate from Buckingham, Doug Garrett. Who knew this was going to this much debate? Thank you, Mr. Speaker. Speak to the bill.

[02:49:41] Thank you, Mr. Speaker. I feel like the louder people talk and the faster people talk, the more likely it is you might have them somewhere they don't want to be. A long time ago, I was thinner, better looking, had more hair, better paycheck, and was a prosecutor.

[02:50:00] And I actually prosecuted some voting fraud. And so I have cause to know a little bit about this. There's a group, I think they're called activities coordinators, and they work in our assisted living facilities and nursing homes.

[02:50:16] And you don't have to look real hard on the Internet to figure out that the activities coordinators are responsible for, excuse me, for facilitating people voting. This came to my attention when a young woman came in to see me and said, my mama voted.

[02:50:32] And I said, wow, that's great. She said, Mr. Garrett, you don't understand. My mom doesn't know peas from carrots. Well, her mama didn't vote. The activities coordinator voted her. And apparently the activities coordinator voted a lot of people.

[02:50:49] And according to this young woman, her mama didn't vote in all likelihood the way her mama might have voted. Could she have, and I quote her, determined peas from carrots? And so what this bill says is you have to have a special trip before our overloaded, overbooked, underpaid court system to be specifically adjudicated and incompetent to vote, even if we know you're incompetent for everything else, to include determination of peas versus carrots.

[02:51:14] And so when you jump up and scream and yell and squall and boo, all it means is we got you. We're willing to tell the people of Virginia the truth. Why aren't y'all? Mr. Speaker, I know how I'm voting on this bill. I know how anybody who cares about one person, one vote should vote on this bill.

[02:51:32] I also know how this room is going to vote on this bill. I just think the people of Virginia deserve to know. Delegate from Fairfax, Delegate Tran. Thank you, Mr. Speaker. Speaking to the bill? The delegate has the floor.

[02:51:48] Mr. Speaker, a lot's been said about this bill, and I just want to make sure that folks are clear, and I'll speak slowly so that I'm clear, too. In the very simplest terms, families make really difficult

decisions when they have to decide if they are going to put a loved one under guardianship or conservatorship.

[02:52:07] What we are asking the courts is to help maintain the dignity of that individual person. That maybe they can't take care of their financial responsibilities on their own. Maybe they're not able to make their medical decisions. But to recognize their humanity and to see if they still have that ability and the capacity to have a voice in our democracy.

[02:52:26] When you go with that individual and you meet with the lawyers and the guardian ad litem, the determination is made on a number of different subjects, right? Can they make their medical decisions, financial decisions? And then we're also asking, can you make a determination about their capacity and understanding about their ability to vote?

[02:52:44] We should not automatically disenfranchise somebody because they might have a disability. And so this bill is about enfranchising folks, ensuring that they have their rights until the courts make that determination as part of the current process. That's all this bill does. It's supported by the individuals with disabilities and the IDD community and a lot of others who want to make sure that all of our voters who are eligible are able to do so.

[02:53:09] Thank you, Mr. Speaker. Shall the bill be engrossed and pass the third reading? All those in favor, say aye. Aye. All those opposed, no. The bill is engrossed and passed the third reading. Next up is House Bill 1321. Legislation to amend and reenact section of the Code of Virginia relating to elections, conduct of primaries, abstracts of votes, law enforcement officers to obtain returns not forwarded.

[02:53:30] legislation reporting on privileges and elections. Delegate from Norfolk, Delegate Anthony. Thank you, Mr. Speaker. This is not peas nor carrots, but HB 1321. It is a technical cleanup bill requested by the Voter Registrar's Association of Virginia to resolve a conflict in current election law. In 2024, this body extended the canvas and certification deadline from seven days to ten days after an election.

[02:53:59] However, two sections of code now conflict. Section 24.2-532 still triggers enforcement at six days for primary elections, while Section 24.2-678 provides a ten-day window for all elections.

[02:54:20] House Bill 1321 simply strikes the outdated six-day enforcement sentence in that section of 24.2-532 so that Virginia has one uniform canvas and certification timeline.

[02:54:36] This is about clarity. It's about uniformity. It's about election integrity. Mr. Speaker, I move that this bill be engrossed and passed to its third reading. Should the bill be engrossed and passed to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading.

[02:54:52] Next up is House Bill 1348, legislation to amend and reenact section of Dakota, Virginia, relating to campaign finance, large pre-election contributions report, election day reporting requirement, legislation report committing on privileges and elections. Delegate for Fairfax, Delegate Sebo. Thank you, Mr. Speaker. Speaking to the bill.

[02:55:08] The delegate has the floor. Thank you, Mr. Speaker. HB 1348 is a simple fix. It strikes the requirement of reporting a contribution the day prior to election day and instead allows 24 hours to report the contribution. Mr. Speaker, I hope it's the will of the body to engross the bill and pass it on to his third reading.

[02:55:24] Should the bill be engrossed and passed the third reading? All those in favor say aye. All those opposed, no. The bill's engrossed and passed the third reading. I'm returning to pick up four bills that have got moved out of the uncontested block, so we return to page 16 if you're following that way. Bill before you now is House Bill 123 on this second reading regular.

[02:55:41] This legislation seeks to amend and reenact the Code of Virginia relating to delinquent children, loss of driving privileges for alcohol, firearm, and drug offenses, truancy. Legislational Support Committee for Courts of Justice. Delegate from Loudoun County, Delegate Reesa. Thank you, Mr. Speaker. Mr. Speaker, HB 123 comes as a bipartisan and unanimous recommendation of the Committee on District Courts.

[02:56:01] This bill updates current law to give judges discretion in juvenile cases. Under the current law, judges are required to automatically deny driving privileges for at least 30 days, and this bill will simply change that requirement from child to may so they can consider the best interest of the child.

[02:56:19] The mandatory denial at this point applies even when a judge determines that the penalty is not appropriate for the child's circumstances. I move that the bill be engrossed and passed to its third read. Shall the bill be engrossed and pass the third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed the third reading.

[02:56:35] Over on page 17, we come to House Bill 131, legislation to amend the Code of Virginia related to public institutions of higher education, reasonable accommodations for the religious beliefs and practices of individual students. The delegate from Fairfax, Delegate Simon.

[02:56:53] Mr. Speaker, members of the House, HB 131 allows folks that are at colleges and institutions to know what the policy is going to be in advance for making religious accommodations for tests and assignments that are due on religious holidays. It also requires the faculty handbook to be updated with these policies and have a redress procedure so you don't have to choose between taking an essential exam or turning in an assignment or following your sincerely held religious beliefs and being out for a holiday.

[02:57:17] I hope it's the pleasure of the body to engross the bill and pass it to its third reading. Shall the bill be engrossed and pass the third reading? All those in favor say aye. Those opposed, no. The bill is engrossed and passed the third reading. Going to page 18 of the printed calendar now before you is House Bill 149, Legislation to amend and reenact the Code of Virginia relating to decreasing probation period.

[02:57:37] Legislation to report the committee for courts of justice with an amendment. Delegate from Patrick County, Delegate Williams. Mr. Speaker, I'd like to move the amendment. Shall the committee amendment be agreed to? All those in favor say aye. All those opposed, no. The committee amendment is agreed to. Mr. Speaker, speaking to the bill. Doug has the floor. Mr. Speaker, HB 149 is a straightforward probation reform measure that emerged from a work group established by legislation from last session.

[02:57:59] It brought together the Department of Corrections, Commonwealth's Attorneys, Defense Council, and other stakeholders. It allows the Department of Corrections to request early termination of supervised probation after 12 months for individuals who are compliant, employed, or in treatment and pose minimal risk.

[02:58:16] The court retains final authority, and victims are notified. It rewards positive behavior, focuses on supervision resources where they're most needed, and reflects the conscious of that working group. I urge the body's support. I ask that the bill be engrossed and passed on to its third reading.

[02:58:32] Should a bill be engrossed and passed on to its third reading? All those in favor say aye. All those opposed, no. The bill is engrossed and passed on to its third reading. And going to page 28, we come to House Bill 854, Legislation to amend and reenact two sections of the Code of Virginia relating to a real property tax, local classification, or designation for portion of property.

[02:58:52] Legislation to amend and reenact two sections of the Code of Virginia relating to a real property tax, local classification, or designation for portion of property. Legislation to report to their own finance with an amendment of nature. Substitute. Delegate from Richmond, Delegate Cousins. Thank you, Mr. Speaker. I move that the House adopt the committee substitute. Shall the committee substitute be agreed to? All those in favor say aye. All those opposed, no. The committee substitute is agreed to. Thank you. HB 854 provides a technical fix to ensure that non-profit affordable housing providers who are financed with low-income housing tax credits are able to fully access existing tax relief measures that are provided for them in the code.

[02:59:20] This substitute clarifies that nonprofit ownership can be defined to include nonprofits that are operating affordable housing as defined in Section 15.2-2201 of the code, making localities' authority and existing constitutional tax exemptions more effective.

[02:59:36] The bill does not provide a mandate for localities, but simply lists nonprofit affordable housing as a possible allowable use. Mr. Speaker, I move that the bill be engrossed and passed to its third reading. Should the bill be engrossed and passed to its third reading? All those in favor, say aye. Those opposed, no. The bill is engrossed and passed to its third reading.

[02:59:53] Mr. Speaker, members of the House, continuing with today's calendar, page 47, we come to the new category of resolutions uncontested calendar. There is one resolution in this category. It is House Joint Resolution 18 relating to a portrait of the Honorable Yvonne Vaughn Miller.

[03:00:12] This legislation of Delegate McQuinn's was reported on January 27th from the Committee on Rules. Delegate from Richmond City, Delegate McQuinn. Thank you, Madam, Mr. Speaker.

[03:00:27] Mr. Speaker, I ask that H.J. 18 go by for the day. Without objection, H.J. 18 goes by for the day. Continuing a new category on the same page, we come to resolutions regular calendar. We have Senate Joint Resolution 1.

[03:00:45] SJR 1 proposes an amendment to the Constitution by adding in Article 1, a section numbered 11A, relating the fundamental right to reproductive freedom. This legislation was reported committing on privileges and elections. The delegate from Newport, the delegate from Alexander, Delegate Herring.

[03:01:00] Thank you, Mr. Speaker. SJR 1 is the cognate to the House Joint Resolution 1, which provides for reproductive freedom from everything from contraception, abortion, and IVF care. I move that we pass the resolution. Shall the resolution be agreed to?

[03:01:17] It's a recorded vote. Clerk will close the vote.

[03:01:33] Ayes 59, noes 35. Ayes 59, noes 35. The resolution is agreed to. Over on page 48, we come to Senate Joint Resolution 2. This resolution proposes an amendment to Section 1 of Article 2 of the Constitution of Virginia related to qualifications of voters and the right to vote versus not entitled to vote.

[03:01:53] Legislation again reported committee on privileges and elections. Delegate from Alexandria, Delegate Bennett Parker. Thank you, Mr. Speaker. I rise to speak to the resolution. Delegate has the floor.

Thank you, Mr. Speaker. Senate Joint Resolution 2 is identical to House Joint Resolution 2, which we passed a few weeks ago. It provides an affirmative fundamental right to vote for qualified voters and also provides for the automatic restoration of political rights once a person with a felony conviction is released from incarceration.

[03:02:15] I move adoption of the resolution. Shall the resolution be agreed to? Clerk will close the roll. Ayes 60, noes 34.

[03:02:34] Ayes 60, noes 34. The resolution is agreed to. And Senate Joint Resolution 3, this one proposes amendment to Section 15A of Article 1 of the Constitution of Virginia relating to marriage between two adult persons, repeal of same-sex marriage prohibition, affirmative right to marry. Legislation, again, was reported for the Committee on Privileges. Delegate Alexander, Delegate Herring. Thank you, Mr. Speaker. This is accognite to the House Joint Resolution 3, which recognizes marriage equality and same-sex marriage.

[03:03:02] I move that we pass the resolution. Shall the resolution be agreed to? The clerk will close the roll. Ayes 61, Noes 32.

[03:03:19] Ayes 61, Noes 32. The resolution is agreed to. Continuing with the calendar, new category, Memorial Resolutions laid on the speaker's table. The Memorial Resolutions will be adopted in block, are listed on pages 48 through 50 of today's calendar, with the exception of House Resolution 42, which is by for the day and therefore out of the block.

[03:03:38] All those in favor of adopting the Memorial Resolutions laid on the speaker's table are listed on pages 48 through 50, 48 through 50, with the exception of H.R. 42, on page 49 of the calendar, will rise. The resolution is agreed to.

[03:03:57] And the final category, today's calendar, commending resolutions laid on the speaker's table. The commending resolutions will be adopted in block or spread across pages 50 through 53 of the regular calendar, with the exception of House Short Resolution 11 and House Short Resolution 13 that are taken later in the week. The rest of them are all in the block and now before you.

[03:04:15] All those in favor of adopting the committee resolutions laid on the Speaker's table found on pages 50 through 53 with exclusions of House Joint Resolution 11 and 13 of the printed calendar will say aye. Those opposed, no. The resolutions are agreed to. Mr. Speaker, that completes today's calendar.

[03:04:37] So as a House Rule 51, the House is returned to the morning hour. Does the Clerk have any additional communications or announcements? Just two announcements. Before I get to the calendar, the speaker and I kindly request a lot of people are moving around the chamber, which is great, but we also have pages here who are more than happy to do that for you, so who are part of their civics education is participating in that, so interacting with them, maybe having them be your legs in energy would be very welcome if that is something that you can do.

[03:05:09] He would be extremely grateful for that. Mr. Speaker, looking ahead, members of the body, to today, this Monday. We have the committee on appropriations, 15 minutes upon adjournment of the House, they'll be up on the 12th floor of the appropriations committee room, then three of its subcommittees will meet. So once the full committee is finished with its docket, then approach general government and capital outlay will meet.

[03:05:29] Then once they're finished, then comp and retirement subcommittee will meet. And then once that subcommittee is finished, then elementary and secondary subcommittee of appropriations, three of its subcommittees will be meeting on the 12th floor. The Committee on Finance today is not meeting, however, the Finance Subcommittee No. 1 will meet immediately upon adjournment of the House here shortly.

[03:05:51] They will be in House Committee Room B on the second floor. This is an additional meeting for Sub 1 of the House Committee on Finance. Fifteen minutes upon adjournment of the Finance Subcommittee 1, the Court's Criminal Justice Subcommittee will meet. They'll be next door in House Room C on the second level.

[03:06:10] So a half hour after adjournment in the House, approximately 3:30ish, the Committee of Courts of Justice Civil Subcommittee, and they'll be in the North Subcommittee room on the second floor. The full Committee on Courts is foregoing. It's time for its subcommittees to work on their dockets at 4:00.

[03:06:25] The Privilege of Elections and Election Administration Subcommittee is meeting. They'll be on the House South Subcommittee room on the second floor. Also at 4:00, ACNR's Chesapeake Subcommittee, they'll be at 4:00 in House Committee Room May, down in the lower level, and then rounding out the afternoon is a Northern Virginia Delegation Caucus.

[03:06:45] They'll be in the 10th floor committee room up on the 10th floor of the General Assembly Building. Looking ahead to tomorrow, February 3rd, Privileges and Elections Campaign and Candidates Subcommittee. They'll meet at 7:00 a.m. in the House North Subcommittee Room on the second floor.

[03:07:05] Then at 7:30, Committee on Education's K-12 Subcommittee is meeting. They'll be down in the lower level, House Committee Room A. Then the conservative caucus, they'll be meeting at 7.30 up on the 8th floor committee room of the GAB.

[03:07:24] At 8 o'clock, the Committee on Transportation's Department of Motor Vehicles subcommittee will be meeting at 8 in the House Committee Room B on the 2nd floor subcommittee. Then the full committee will meet at 9, again in that same room. And then also, once the full committee is finished, the Transportation, Infrastructure, and Funding Subcommittee will be meeting all on the second floor of House Committee Room B.

[03:07:47] At 8:30, Health and Human Services Subcommittee will be meeting, House Committee Room C on the second floor. Once they're finished, their Health Subcommittee will meet immediately upon adjournment of the full committee. And then you get to the caucus meetings.

[03:08:04] The Democratic caucus is at 11.15 tomorrow at House Room 1, and the Republicans at 11 o'clock. They will be at 11 o'clock in House Room 2. Mr. Speaker, that is all the announcement I have. And again, this is all on the meeting schedule for those who want to follow along at home.

[03:08:21] The delegate from Alexandria, Delegate Herring. Mr. Speaker, I move that when the House adjourns today and adjourn to reconvene tomorrow at 12 noon. Delegate from Alexandria, Delegate Herring moves that when the House adjourns today and adjourn to reconvene tomorrow at 12 noon. As many in favor, the motion will say aye. Those opposed, no. The motion is agreed to. The Delegate from Alexander. Delegate Herring.

[03:08:38] Mr. Speaker, I move that the House do now adjourn. Delegate from Alexander. Delegate Herring moves that the House do now adjourn. As men in favor, the motion will say aye. Those opposed, no. The motion is agreed to. The House stands adjourned until tomorrow, 12 noon.

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